IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD BENCH
COURT-II

CP (CAA) 60/AHM/2021
in
CA (CAA) 36/AHM/2021

[Sections 230-232 and other applicable provisions of the Companies Act, 2013 r.w. Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016]

In the matter of composite Scheme of Arrangement

Between

M/s Excelsource International Private Limited,
(Petitioner Company No. 1/Transferee Company and/or Resulting Company)

And

M/s Cool N Care Technologies Private Limited
(Petitioner Company No. 2/Transferor Company No. 1)

And

M/s Solutions 4 Energy Private Limited
(Petitioner Company No. 3/Transferor Company No. 2)

And

M/s Golf Way Leisure Private Limited
(Petitioner Company No. 4/Transferor Company No. 3)

And

M/s Redclieffe Real Estate Private Limited
(Petitioner Company No. 5/Transferor Company No. 4)

And

M/s House & Life Technology Private Limited
(Petitioner Company No. 6/Transferor Company No. 5)

And

M/s Jaiveek Agro Biotech Private Limited
(Petitioner Company No. 7/Transferor Company No. 6)

And

M/s Metmin Resource Consultants Private Limited
(Petitioner Company No. 8/Demerged Company)

And

Their Respective Shareholders and Creditors

Order Pronounced on: 06.12.2022

CORAM:
DR. DEEPTI MUKESH
HON'BLE MEMBER (JUDICIAL)
AJAI DAS MEHROTRA
HON'BLE MEMBER (TECHNICAL)

MEMO OF PARTIES

M/s Excelsource International Private Limited
A company incorporated under the
provisions of the Companies Act, 1956
Having its registered office at
301/302, Sampatti Complex, Sardarbaug Lane,
B/h Bombay Shopping Centre, Race Course,
Vadodara-390007, Gujarat, India.

....Petitioner Company 1/
Transferee Company and/or Resulting Company

M/s Cool N Care Technologies Private Limited
A company incorporated under the
Provisions of the Companies Act, 1956
Having its registered office at
101 Sampatti Complex,
Opp Jagdish Hall, Race Course
Vadodara 390007, Gujarat, India.

....Petitioner Company 2/
Transferor Company No. 1

M/s Solutions 4 Energy Private Limited
A company incorporated under the
Provisions of the Companies Act, 1956
Having its registered office at
301/302, Sampatti Complex, Sardarbaug Lane,
B/h Bombay Shopping Centre, Race Course,
Vadodara-390007, Gujarat, India.

....Petitioner Company 3/
Transferor Company No. 2

M/s Golf Way Leisure Private Limited
A company incorporated under the
Provisions of the Companies Act, 1956
Having its registered office at
301/302, Sampatti Complex, Sardarbaug Lane,
B/h Bombay Shopping Centre, Race Course,
Vadodara-390007, Gujarat, India.

....Petitioner Company 4/
Transferor Company No. 3

M/s Redclieffe Real Estate Private Limited
A company incorporated under the
Provisions of the Companies Act, 1956
Having its registered office at
201/202, Sampatti Premises, Sardar Baug Lane,
Behind Bombay Shopping Centre,
Race Course, Vadodara-390007,
Gujarat, India

....Petitioner Company 5/
Transferor Company No. 4

M/s House & Life Technology Private Limited
A company incorporated under the
Provisions of the Companies Act, 1956
Having its registered office at
301/302, Sampatti Complex, Sardarbaug Lane,
B/h Bombay Shopping Centre, Race Course,
Vadodara-390007, Gujarat, India.

....Petitioner Company 6/
Transferor Company No. 5

M/s Jaiveek Agro Biotech Private Limited
A company incorporated under the
Provisions of the Companies Act, 1956
Having its registered office at
202, Sampatti Premises, Sardar Baug Lane,
Behind Bombay Shopping Centre, Race Course,
Vadodara-390007, Gujarat, India

....Petitioner Company 7/
Transferor Company No. 6

M/s Metmin Resource Consultants Private Limited
A company incorporated under the
Provisions of the Companies Act, 1956
Having its registered office at
301/302, Sampatti Complex, Sardarbaug Lane,
B/h Bombay Shopping Centre, Race Course,
Vadodara-390007, Gujarat, India.

....Petitioner Company 8/
Demerged Company

For the Petitioners:	Sr. Advocate, Mr. Navin Pahwa a/w Advocate, Mr. Ravi Pahwa.
For the Income Tax Dept:	Advocate, Ms. Dhruvi Trivedi for Advocate, Ms. Maithili Mehta.
For the RD :	Assistant Director, Mr. Liladhar Sharma.
For the OL :	Deputy OL**,** Mr. Kamlesh Rathod.

ORDER

1. This joint petition under Sections 230-232 of the Companies Act, 2013 has been filed seeking sanction to a Composite Scheme of Arrangement which inter-alia provides for:

   a) Amalgamation of Cool N Care Technologies Private Limited, Petitioner Company No. 2, Solutions 4 Energy Private Limited, Petitioner Company No. 3, Golf Way Leisure Private Limited, Petitioner Company No. 4, Redclieffe Real Estate Private Limited, Petitioner Company No. 5, House & Life Technology Private Limited Petitioner Company No. 6 and Jaiveek Agro Biotech Private Limited, Petitioner Company No. 7 (hereinafter referred as the Transferor Companies) with Excelsource International Private Limited, Petitioner Company No. 1 (hereinafter referred as the Transferee/Resulting Company), on a going concern basis;

   Along with

   b) Demerger of the HR Consultancy and Facility Usage/ Leasing Business Undertaking (as defined in the Scheme) of Metmin Resource Consultants Private Limited, Petitioner Company No. 8 (hereinafter referred as the Demerging Company) and merger into Excelsource International Private Limited, Petitioner Company No. 1 on a going concern basis.

2. From the records, it is seen that the 1st motion application was filed seeking dispensation of meetings of Equity Shareholders of all the Petitioner Companies, Unsecured Creditors of Petitioner Company Nos. 2

to 8 and directions for convening the meetings of Secured Creditors of Petitioner Company No. 1, Petitioner Company No. 8 and Unsecured Creditors of Petitioner Company No. 1. Since, there were no Secured Creditors in Petitioner Company Nos. 2 to 7, no directions were required. The said application was allowed vide order dated 15.06.2021 and directions were issued for issuance of notice to the concerned Statutory Authorities. The said directions were complied with and Affidavit of compliance is on record. The reports of the Chairperson and Scrutinizer dated 22.09.2021 are filed and placed on record on 24.09.2021.

3. The Petitioner Companies filed 2nd motion joint petition within time prescribed. On 17.11.2021, this Tribunal passed an order issuing notices to the concerned Statutory/Regulatory Authorities and also directed publication in the newspapers "Business Standard" in English and "Lok Satta" in Gujarati having circulation in Vadodara, Gujarat.

4. Pursuant to the said directions, notices were duly served on the statutory authorities and publications were duly made in the newspapers. An affidavit confirming service and paper publication has been placed on record.

5. In response to the notice the Regional Director, North Western Region, MCA filed his report along with the report of ROC, seeking following directions:

   i) Compliance of the provisions of Section 232(3)(i) of the Companies Act, 2013;

   ii) Compliance of the provisions of Sec. 2(19AA) of the Income Tax Act;

   iii) The appointed date mentioned in the Scheme is 01.04.2020 and the Company Application was filed a year later from the appointed date. Therefore, the Petitioner Companies to explain about the same;

   iv) Compliance of the provisions of FEMA and RBI guidelines;

   v) As per the MCA portal, it reveals that the Transferee Company is having three secured creditors, whereas in the Application, it was mentioned that the Transferee Company has two secured creditors;

   vi) To pay amount of legal fees/cost to the central government.

6. In response to the notice, the Official Liquidator filed its observations seeking following directions:

   i) to preserve books and records of the Petitioner Transferor Companies for the requisite period.

ii) to comply with all statutory compliances, liabilities under applicable laws and do not seek any absolution under the scheme.

iii) to pay amount of legal fees/cost to the Official Liquidator.

7. The Petitioner Companies have filed a common affidavit in reply to the observations of Regional Director and RoC giving undertaking as under:

i) To comply with the provisions of Section 232(3)(i) of the Companies Act, 2013;

ii) To comply with the provisions of Sec. 2(19AA) of the Income Tax Act;

iii) It is stated that the time gap between the appointed date (1.4.2020) and the date of filing of company application being 20.4.2021 is due to pandemic of covid-19 which affected the entire world w.e.f. March 2020. The State Government had imposed several lockdowns from time to time, which were lifted after long time. In the above circumstances and due to bonafide and genuine reasons, the company application was filed on 1.4.2021.

iv) The petitioner companies undertake to comply with the provisions of FEMA and RBI guidelines;

v) It is stated that as on the cut-off date (i.e., 15 March 2021), HDFC Bank was not the secured creditor of Petitioner Company 1 i.e. Transferee Company/ Resulting Company. The car loan availed from HDFC Bank was disbursed only on 25th March 2021 and

13th May 2021. As per the directions contained in Para 15(iv) of the order dated 15th June 2021 made by this Hon'ble Tribunal in (C.A. (CAA)/36(AHM) 2021), notice was to be sent to all secured creditors as on 25th June 2021. Accordingly, a notice was dispatched to HDFC Bank for the meeting of secured creditors scheduled to be held on 26th August 2021 (i.e. the adjourned date on which the meeting was held). The said secured creditor did not attend the meeting, however, the quorum prescribed by this Tribunal (i.e. two secured creditors) was achieved in the meeting. Considering the above, the directions given by Tribunal stands complied with.

8. The Income Tax Department in its report dated 13.06.2022 stated that there is outstanding demand of Rs. 83,770/- for A.Y. 2009-10 against the Petitioner Company No. 4, M/s Golf Way Leisure Private Limited and demand of Rs. 2780/- for A.Y. 2015-16 against the Petitioner Company No. 3, M/s Solutions 4 Energy Private Limited. Except for intimation of demand, no objection was raised by the Income Tax Department.

9. The Ld. Counsel for the Income Tax Department appeared and submitted during hearing that reports with respect to all eight companies are filed and Department do not have any objection for approval of the Scheme, as recorded in daily order dated 29.09.2022.

10. Mr. Kamlesh Rathod, Deputy OL appeared on 29.09.2022 for the Official Liquidator office, made a statement that there are no adverse remarks from the OL office against the Scheme. Since, there are no adverse remarks from the OL office, Petitioner Companies did not file the reply to the representation of the OL.

11. Learned Sr. Counsel, Mr. Navin Pahwa during the course of hearing submitted that there are no RERA projects and therefore no intimation to RERA is required under Law.

12. The petitioner companies have filed their respective audited Financial Statements as on 31st March 2020 and unaudited Financial Statements as on 31st March, 2021.

13. It is stated that no investigation or proceedings are pending against any of the Petitioner Companies u/s. 210 to 217, 219, 220, 223, 224, 225, 226 and 227 of the Companies Act, 2013.

14. In compliance with the proviso to sub-section (7) of Section 230 of the Companies Act, 2013, all the Petitioner Companies have placed on record the Certificates of the respective Statutory Auditors confirming that the accounting treatment envisaged under the Scheme of Arrangement, is in compliance with the applicable accounting standards notified by the Central Government in Section 133 of the Companies Act, 2013.

15. Heard submissions and perused documents placed on record. The approval is accorded by the members and creditors of the Petitioner Companies to the proposed Scheme. The queries/objections by the Statutory Authorities are dealt with by the Petitioner Companies through undertakings and satisfying respective statutory authorities, who have approved and given no objection during hearing. As a consequence, sanction is hereby granted to the Scheme under Section 230-232 of the Companies Act, 2013. The Petitioners shall, however, remain bound to comply with the statutory requirements in accordance with law and other directions as pointed by the Regional Director and Official Liquidator. The schedule of property of the Transferor Companies are placed on record.

16. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal to the scheme will not come in the way of action being taken, albeit, in accordance with law, against the concerned persons, directors and officials of the Petitioners.

17. While approving the Scheme as above, we further clarify that this order should not be construed as an order in any manner granting exemption from payment of stamp duty, or taxes including income tax, GST etc., or

any other charges or payment in accordance with law, or any kind of waiver in respect of any permission/compliance with any other requirement which may be specifically required under any law.

18. **The Scheme is sanctioned with following directions:**

i. The Scheme of Arrangement as annexed herewith as **"Annexure-A"** is hereby sanctioned and is declared that the same shall be binding on the petitioner companies and their shareholders and creditors and all concerned under the Scheme.

ii. The Transferor Companies shall be dissolved without winding up and the Board of Directors/any committees thereof of the Transferor Companies shall without any further act, instrument or deed shall stand dissolved;

iii. All the property, right and powers of the Transferor Companies specified in the schedule of properties at **"Annexure-B"** hereto and all the other property, rights and powers of the Transferor Companies be transferred without further act or deed to the Transferee/Resulting Company in accordance with the Scheme and accordingly the same shall pursuant to Section 232 of the Act, stand transferred to and vest in the Transferee Company in accordance with the Scheme for all the estate and interest of the Transferor Companies therein but subject nevertheless to all charges now affecting the same.

iv. All the property, right and powers of the Demerged Undertaking of the Demerging Company specified in the Scheme and all the other property, rights and powers of the Demerged Undertaking of the Demerging Company be transferred without further act or deed to the Transferee/Resulting Company in accordance with

the Scheme and accordingly the same shall pursuant to Section 232 of the Act, stand transferred to and vest in the Resulting Company in accordance with the Scheme for all the estate and interest of the Demerged Undertaking of the Demerging Company therein but subject nevertheless to all charges now affecting the same.

v. All licenses, permissions, permits, quotas, approvals, certificates, clearances, authorities, leases, tenancy, assignments, rights, claims, liberties, other benefits or privileges relating to the Transferor Companies and demerged undertaking of Demerging Company stand transferred to and vested in the Transferee/Resulting Company in accordance with the Scheme, without any further act or deed and be in full force and effect in favour of the Transferee/Resulting Company, as if the same were originally given to, issued to or executed in favour of the Transferee/Resulting Company. The Transferee/Resulting Company shall be bound by the terms thereof, the obligations and duties there under, and the rights and benefits under the same shall be available to the Transferee/Resulting Company.

vi. All proceedings, if any, now pending or against the Transferor Companies/ Demerged Undertaking of the Demerging Company be continued by or against the Transferee /Resulting Company. All taxes paid or payable by all the Transferor Companies/ Demerged Undertaking of the Demerging Company and all existing and future incentives, un-availed credits and exemption, benefit of carried forward losses and other statutory benefits, to which the Transferor Companies/ Demerged Undertaking of the Demerging Company are entitled to, shall be available to and vest in the Transferee /Resulting Company.

vii. All contracts, agreements, undertakings, insurance policies, bonds and all other instruments of whatsoever nature or description, of all the Transferor Companies/ Demerged Undertaking of the Demerging Company, which are subsisting or having effect immediately before the Effective Date, shall stand transferred to and vested in the Transferee Company/ Resulting Company in accordance with the Scheme and be in full force and effect in favour of the Transferee/ Resulting Company as the case may be and may be enforced by or against it as fully and effectually as if, instead of the Transferor Companies/ Demerged Undertaking of the Demerging Company, the Transferee / Resulting Company had been a party or beneficiary or obliged thereto.

viii. As proposed in the Scheme, upon the Scheme becoming effective, the Transferee Company, shall without further application allot to the members of the Transferor Companies whose name is recorded in the Register of Members of the Transferor Companies on the record date, the shares in the Transferee/Resulting Company to which they are entitled in the following ratio:-

- "1 (One) equity shares of Petitioner Company 1 of Rs. 10/- each fully paid up for every 10,000 (Ten Thousand) equity shares of Petitioner Company 2 of Rs. 10/- each fully paid up."

- "12 (Twelve) equity shares of Petitioner Company 1 of Rs. 10/- each fully paid up for every 10,000 (Ten Thousand) equity shares of Petitioner Company 3 of Rs. 1/- each fully paid up"

- "1 (One) equity shares of Petitioner Company 1 of Rs. 10/- each fully paid up for every 20,000 (Twenty Thousand)

equity shares of Petitioner Company 4 of Rs. 10/- each fully paid up."

- "1 (One) equity shares of Petitioner Company 1 of Rs. 10/- each fully paid up for every 10,000 (Ten Thousand) equity shares of Petitioner Company 5 of Rs. 10/- each fully paid up."

- "69 (Sixty nine) equity shares of Petitioner Company 1 of Rs. 10/- each fully paid up for every 10,000 (Ten Thousand) equity shares of Petitioner Company 6 of Rs. 10/- each fully paid up"

- "1 (One) equity shares of Petitioner Company 1 of Rs. 10/- each fully paid up for every 1,00,000 (One Lakh) equity shares of Petitioner Company 7 of Rs. 10/- each fully paid up."

ix. Upon the Scheme becoming effective, the Resulting Company shall without further application allot to the members of the Demerged Company whose name is recorded in the Register of Members of the Demerged Company on the record date, the shares in the Resulting Company to which they are entitled in the following ratio:-

- "2354 (Two Thousand Three Hundred Fifty Four) Equity Shares of Rs. 10 /- each of Petitioner Company 1 for every 100 (One Hundred) fully paid up equity shares of Rs. 10/- each held in Petitioner Company 8."

x. All workers / employees of all the Transferor Companies/ Demerged Undertaking of the Demerging Company shall be deemed to become the workers /employees of the Transferee/ Resulting Company with effect from the Appointed Date, and shall stand absorbed in the Transferee / Resulting Company in accordance with the Scheme without any interruption of service

and on term and conditions no less favourable than those on which they are engaged by the Transferor Companies/ Demerged Undertaking of the Demerging Company, as on the Effective Date.

xi. Upon Scheme being effective, the Authorised Capital of the Transferor Companies/ Demerged Undertaking of the Demerging Company shall be consolidated with the Authorised Capital of the Transferee / Resulting Company as envisaged under Clause 14 of the Scheme.

xii. Filling and issuance of drawn up orders are dispensed with. All concerned Authorities to act on copy of this order along with the Scheme authenticated by the Registrar of this Tribunal shall issue the certified copy of this order along with the Scheme immediately.

xiii. The Petitioner Companies are directed to lodge a copy of this Order and the approved Scheme and Schedule of Assets of the Transferor Companies/ Demerged Undertaking of the Demerging Company attached as Annexure-B with this order, duly authenticated by the Registrar of this Tribunal, with the concerned Superintendent of Stamps, for the purpose of adjudication of stamp duty, if any, within 60 days from the date of the Order.

xiv. The Petitioner Companies are further directed to file a copy of this order along with the copy of the Scheme with the concerned Registrar of Companies, electronically, along with e-form INC-28 in addition to physical copy within 30 days from the date of issuance of the certified copy of the Order by the Registry as per relevant provisions of the Act.

xv. The legal fees and expenses of the office of the Regional Director are quantified at Rs.10,000/-in respect of each of the petitioner companies. The said fees to the Regional Director shall be paid by the Transferee Company/ Resulting Company.

xvi. The legal fees and expenses of the office of the Official Liquidator are quantified at Rs.10,000/- in respect of ease of the petitioner Transferor Companies. The said fees to the Official Liquidator shall be paid by the Transferee Company.

xvii. Any person aggrieved shall be at liberty to apply to the Tribunal in the above matter for any direction that may be necessary.

19. Company Petition is allowed and disposed of in terms of the above order.

-SD-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

-SD-

DR. DEEPTI MUKESH
MEMBER (JUDICIAL)

Abhishek Steno/Rahul LRA

Annexure - 5

Annexure "A"

Annexure - 5

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COMPOSITE SCHEME OF ARRANGEMENT

AMONGST

EXCELSOURCE INTERNATIONAL PRIVATE LIMITED

AND

COOL N CARE TECHNOLOGIES PRIVATE LIMITED

AND

SOLUTIONS 4 ENERGY PRIVATE LIMITED

AND

GOLF WAY LEISURE PRIVATE LIMITED

AND

REDCLIFFE REAL ESTATE PRIVATE LIMITED

AND

HOUSE & LIFE TECHNOLOGY PRIVATE LIMITED

AND

JAIVEER AGRO BIOTECH PRIVATE LIMITED

AND

METMIN RESOURCE CONSULTANTS PRIVATE LIMITED

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

UNDER SECTIONS 230 TO 232 AND OTHER APPLICABLE PROVISIONS OF THE COMPANIES ACT, 2013

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BACKGROUND OF THE COMPANIES

(i) **Excelsource International Private Limited** is a private limited company incorporated under the provisions of the Companies Act, 1956 bearing corporate identification number U23209GJ2003PTC042113 having its registered office at 301/302, Sampatti Complex, Sardarbaug Lane, B/h Bombay Shopping Centre, Race Course, Vadodara-390007, Gujarat, India. The Company has been set up primarily to engage in the export and domestic business of vast array of turnkey industrial projects, plants and machineries (hereinafter referred to as "EIPL" or "Transferee Company" / "Resulting Company").

(ii) **Cool N Care Technologies Private Limited** is a private limited company incorporated under the provisions of the Companies Act, 1956 bearing corporate identification number U29248GJ2014PTC076410, having its registered office at 101, Sampatti Complex, Opp Jagdish Hall, Race Course Vadodara 390007, Gujarat, India. The Company has been set up primarily to engage in the business of transportation services (hereinafter referred to as the "CNCTPL" or "Transferor Company 1").

(iii) **Solutions 4 Energy Private Limited** is a private limited company incorporated under the provisions of the Companies Act, 1956 bearing corporate identification number U40106GJ2007PTC049913, having its registered office at 301/302, Sampatti Complex, Sardarbaug Lane, B/h Bombay Shopping Centre, Race Course, Vadodara-390007, Gujarat, India. The Company has been set up primarily to engage in the business of generation, transmission and distribution of Non conventional and conventional energy in all forms including wind power, solar system and energy generated by natural gas, crude oil, thermal power etc (hereinafter referred to as the "S4EPL" or "Transferor Company 2").

(iv) **Golf Way Leisure Private Limited** is a private limited company incorporated under the provisions of the Companies Act, 1956 bearing corporate identification number U55101GJ2007PTC077061, having its registered office at 301/302, Sampatti Complex, Sardarbaug Lane, B/h Bombay Shopping Centre, Race Course, Vadodara-390007, Gujarat, India. The Company has been set up primarily to engage in the business of Human Resource Consultancy (hereinafter referred to as the "GLPL" or "Transferor Company 3").

(v) **Redcliffe Real Estate Private Limited** is a private limited company incorporated under the provisions of the Companies Act, 1956 bearing corporate identification number U45201GJ2008PTC054283, having its registered office at 201/202, Sampatti Premises, Sardar Baug Lane, behind Bombay Shopping Centre, Race Course, Vadodara-390007, Gujarat, India. The Company has been set up primarily to engage in the business of builders, construction etc. (hereinafter referred to as the "RREPL" or "Transferor Company 4").

(vi) **House & Life Technology Private Limited** is a private limited company incorporated under the provisions of the Companies Act, 1956 bearing corporate identification number U31909GJ2009PTC058811, having its registered office at 301/302, Sampatti Premises, Sardar Baug Lane, behind Bombay Shopping Centre, Race Course, Vadodara-390007, Gujarat, India. The Company has been set up primarily to engage in the business of fabricated composite structure, insulated panels and other electronic components (hereinafter referred to as the "HLTPL" or "Transferor Company 5").

(vii) **Jaiveek Agro Biotech Private Limited** is a private limited company incorporated under the provisions of the Companies Act, 1956 bearing corporate identification number U01130GJ2007PTC051441, having its registered office at 202, Sampatti Premises, Sardar Baug Lane, behind Bombay Shopping Centre, Race Course, Vadodara-390007, Gujarat, India. The Company has been set up primarily to engage in the business of organics fertilizer by composing of manure, animal matter or decomposed vegetable / plants (hereinafter referred to as the "JABPL" or "Transferor Company 6").

(viii) **Metmin Resource Consultants Private Limited** is a private limited company incorporated under the provisions of the Companies Act, 1956 bearing corporate identification number U74999GJ2007PTC077026, having its registered office at 301/302, Sampatti Premises, Sardar Baug Lane, behind Bombay Shopping Centre, Race Course, Vadodara-390007, Gujarat, India. The Company has been set up primarily to engage in the business of Human Resource Consultancy and also provides facility usage / leasing services (hereinafter referred to as the "MRCPL" or "Demerged Company").

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B. PREAMBLE

This Composite Scheme of Arrangement ("the Scheme") is presented under Sections 230 to 232 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013 (including any statutory modifications and re-enactments thereof) and the rules and regulations made thereunder as may be applicable for:

(i) Amalgamation of Cool N Care Technologies Private Limited, Solutions 4 Energy Private Limited, Golf Way Leisure Private Limited, Radicletic Real Estate Private Limited, House N Life Technology Private Limited and Jaiveek Agro Biotech Private Limited with ExcelSource International Private Limited, on a going concern basis;

(ii) Demerger of the HR Consultancy and Facility Usage / Leasing Business Undertaking (as defined hereinafter) of Kichen Resource Consultants Private Limited into ExcelSource International Private Limited, on a going concern basis, and

The Scheme also provides for various other matters consequential or otherwise integrally connected herewith.

C. RATIONALE OF THE SCHEME

(i) The present arrangement would result in the following benefits for the abovementioned companies:

- Elimination of inter-company transactions to simplify the shareholding and reduce administrative costs.
- Streamlining the operating structure
- Greater efficiencies in operations with optimum utilization of resources, increased cost savings are expected to flow from focused operational efforts, rationalization, standardization and simplification of business process and optimum utilization of resources.
- Reduction of overheads and other expenses, consolidation of business under one roof and facilitate administrative convenience on account of reduction in number of entities and reduced compliance thereof;
- The demerged company holds several assets which have synergy with the business with the resulting company. Hence, the demerger of the demerged undertaking of the Demerged Company and the transfer of the same to the Resulting Company would help the Resulting Company to have focused management and leadership attention for the demerged undertaking;

(ii) The Scheme is in the best interests of the shareholders, employees and the creditors of all the Companies;

(iii) The Scheme does not have any adverse effect on either the shareholders, the employees or the creditors of any of the companies. The Boards of Directors of the companies believe that the Scheme would ensure benefit to all the stakeholders and will enhance the value for all shareholders / promoters.

D. PARTS OF THE SCHEME

The Scheme is divided into the following parts:

(i) PART I deals with the definitions of capitalized terms used in this Scheme and the details of the share capital of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5, Transferor Company 6, Transferee Company and/or Resulting Company and the Demerged Company;

(ii) Part II deals with the amalgamation of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 with the Transferee Company;

(iii) PART III deals with the transfer and vesting of the Demerged Undertaking from the Demerged Company as a *going concern* into the Resulting Company and discharge of consideration in lieu thereof, in compliance with Section 2(19AA) of Income Tax Act, 1961;

(iv) PART IV deals with the general terms and conditions that would be applicable to this Scheme.

PART I
DEFINITIONS AND SHARE CAPITAL

DEFINITIONS

In this Scheme, unless inconsistent with the subject or context thereof (i) capitalised terms defined by inclusion in quotations and/or parenthesis have the meanings so ascribed; (ii) all terms and words not defined in this Scheme shall have the meaning ascribed to them under the relevant Applicable Laws; and (iii) the following expressions shall have the meanings ascribed hereunder.

"**Act**" means the Companies Act, 2013, to the extent of the provisions notified, and the Companies Act, 1956, to the extent of its provisions in force.

"**Appointed Date**" means 1st April, 2020 or such other date as may be approved by the Tribunal and agreed to by the Board of the Parties.

"**Applicable Law**" or "**Law**" means any applicable national, foreign, provincial, local or other law including applicable provisions of all (a) constitutions, decrees, treaties, statutes, laws (including the common law), codes, notifications, rules, regulations, policies, guidelines, circulars, directions, directives, ordinances or orders of any Appropriate Authority, statutory authority, court, tribunal having jurisdiction over the Parties; (b) approvals; and (c) orders, decisions, injunctions, judgments, awards and decrees of or agreements with any Appropriate Authority having jurisdiction over the Parties as may be in force from time to time;

"**Appropriate Authority**" means:

the government of any jurisdiction (including any national, state, municipal or local government or any political or administrative subdivision thereof) and any department, ministry, agency, instrumentality, court, tribunal, central bank, commission or other authority thereof;

any public international organization or supranational body and its institutions, departments, agencies and instrumentalities; and

any governmental, quasi governmental or private body or agency lawfully exercising, or entitled to exercise, any administrative, executive, judicial, legislative, regulatory, licensing, competition, tax, importing, exporting or other governmental or quasi-governmental authority.

"**Board**" in relation to the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5, Transferor Company 6, Transferee Company/ Resulting Company and the Demerged Company, as the case may be, means the board of directors of such company, and shall include a committee of directors or any person authorized by such board of directors or such committee of directors duly constituted and authorized for the purposes of matters pertaining to this Scheme or any other matter relating thereto;

"**Demerger**" means transfer and vesting of the Demerged Undertaking from MRCFL to EIPL, in terms of section 2(19AA) of the Income Tax Act;

"**Demerged Company**" in relation to Part-III of the Scheme means Metmin Resource Consultants Private Limited, a company incorporated under the provisions of the Companies Act, 1956, having its registered office at 301/302, Samooh Premises, Sardar Baug Lane, behind Bombay Shopping Center, Race Course, Vadodara Vadodara-390007, Gujarat, India.

"**Demerged Undertaking**" and/or "**HR Consultancy and Facility Usage / Leasing Business Undertaking**" means the undertaking with all business units, assets, properties, and liabilities of whatsoever nature and kind, and wherever situated, of the Demerged Company, in relation to, or pertaining to the HR Consultancy and Facility usage / Leasing Business Undertaking to be transferred to the Resulting Company and shall include without limitation:

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(a) all assets and liabilities of the Demerged Company pertaining to the HR Consultancy and Facility Usage / Leasing Business undertaking;

(b) without prejudice to the generality of the provisions of (a) above, the Demerger Undertaking shall include:

(i) all properties and assets of the Demerged Company, including all movable or immovable, investments, freehold, leasehold or licensed, tenancy rights, hire purchase and lease arrangements, real or personal, corporeal or incorporeal or otherwise, present, future, contingent, tangible or intangible, security deposits, capital work in progress, easementary rights, rights of way associated with developing such infrastructure and every associated right, plant and machinery, capital work in progress, furniture, fixtures, office equipment, appliances, accessories, vehicles, all stocks, sundry debtors, deposits, provisions, advances, recoverables, receivables, title, interest, cash and bank balances, bills of exchange, covenants, all earnest monies, security deposits, or other entitlements, funds, powers, authorities, licences, registrations, quotas, allotments, consents, privileges, liberties, advantages, easements and all the rights, title, interests, goodwill, benefits, fiscal incentives, entitlement and advantages, contingent rights or benefits belonging to or in the ownership, power, possession or the control of or vested in or granted in favor of or held for the benefit of or enjoyed by the Demerged Company with respect to the HR Consultancy and Facility usage / Leasing Business Undertaking;

(ii) all contracts, agreements, schemes, arrangements and any other instruments for the purpose of carrying on the business of the HR Consultancy and Facility usage / Leasing Business Undertaking;

(iii) all tax credits, refunds, reimbursements, claims, concessions, exemptions, benefits under Tax Laws including sales tax deferrals and minimum alternate tax paid under section 115JA/115JB of the Income Tax Act, advance taxes, tax deducted at source ("TDS"), tax collected at source ("TCS"), right to carry forward and set-off accumulated losses and unabsorbed depreciation, if any, deferred tax assets – minimum alternate tax credit, goods and service tax ("GST") credit, deductions and benefits under the Income Tax Act with respect to the HR Consultancy and Facility Usage / Leasing Business Undertaking; and

(iv) all debts, borrowings and liabilities, whether present, future or contingent or deferred tax liabilities, whether secured or unsecured, of the HR Consultancy and Facility usage / Leasing Business Undertaking including but not limited to all other rights, duties, obligations and liabilities pertaining to the HR Consultancy and Facility usage / Leasing Business Undertaking.

(c) all Permits, licenses, approvals, registrations, quotas, incentives, powers, authorities, allotments, consents, rights, benefits, advantages, municipal permissions, trademarks, designs, copyrights, patents and other intellectual property rights of the Demerged Company pertaining to the HR Consultancy and Facility usage / Leasing Business Undertaking, whether registered or unregistered and powers of every kind, nature and description whatsoever, whether from the government bodies or otherwise, pertaining to or relating to the HR Consultancy and Facility usage / Leasing Business Undertaking;

(d) entire experience, credentials, past record and market share of the Demerged Company pertaining to the HR Consultancy and Facility usage / Leasing Business Undertaking;

(e) all books, records, files, papers, engineering and process information, computer programs, software licenses (whether proprietary or otherwise), drawings, manuals, data, catalogues, quotations, sales and advertising materials, lists of present and former customers and suppliers, customer credit information, customer pricing information, and other records whether in physical or electronic form in connection with or relating to the HR Consultancy and Facility usage / Leasing Business Undertaking; and

(f) all employees/workers of the Demerged Company engaged in the HR Consultancy and Facility usage / Leasing Business Undertaking.

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(g) Any question that may arise as to whether a specific asset (tangible or intangible) or liability or employee pertains or does not pertain to the Demerged Undertaking shall be decided mutually by the Boards of the Demerged Company and the Resulting Company.

"Effective Date" means the last of the dates on which all conditions, matters and filings referred to in Clause 34 hereof have been fulfilled or waived and necessary orders, approvals and consents referred to therein have been obtained. References in this Scheme to the date of "coming into effect of this Scheme" or "effectiveness of this Scheme" or "upon the Scheme becoming effective" shall mean the Effective Date;

"Encumbrance" means (a) any charge, lien (statutory or other), or mortgage, any easement, encroachment, right of way, right of first refusal or other encumbrance or security interest securing any obligation of any Person; (b) pre-emption right, option, right to acquire, right to set off or other third party right or claim of any kind, including any restriction on use, voting, transfer, receipt of income or exercise; or (c) any hypothecation, title retention, restriction, power of sale or other preferential arrangement; or (d) any agreement to create any of the above; and the term "Encumber" shall be construed accordingly;

"Income Tax Act" means the Income-tax Act, 1961;

"INR" means Indian Rupee, the lawful currency of the Republic of India;

"Parties" means collectively the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5, Transferor Company 6, Transferee Company/ Resulting Company and the Demerged Company and "Party" shall mean each of them, individually;

"Permits" means all consents, licences, permits, certificates, permissions, authorisations, rights, clarifications, approvals, clearances confirmations, declarations, waivers, exemptions, registrations, filings, whether governmental, statutory, regulatory or otherwise as required under Applicable Law and includes all rights of way associated under Applicable Law or otherwise;

"Person" means an individual, a partnership, a corporation, a limited liability partnership, a limited liability company, an association, a joint stock company, a trust, a joint venture, an unlimited liability company, an unlimited liability partnership firm, union, association or Governmental Authority or any entity that may be treated as a person under Applicable Laws;

"Record Date 1" means such date to be fixed by the Board of Directors of EIPL in consultation with CNCTPL, SAEPL, GLPL, RREPL, HLTPL and JABPL for the purpose of determining the members of CNCTPL, SCEPL, Golf Way, RREPL, HLTPL and JABPL to whom shares of EIPL will be allotted pursuant to this Scheme in terms of Clause 10 of this Scheme;

"Record Date 2" means such date to be fixed by the Board of Directors of EIPL in consultation with MRCPL for the purpose of determining the members of MRCPL to whom shares of EIPL will be allotted pursuant to this Scheme in terms of Clause 22 of this Scheme;

"Remaining Business" means the Demerged Company' Remaining Business;

"Resulting Company" in relation to Part III of the Scheme means Excelsource International Private Limited, a company incorporated under the provisions of the Companies Act, 1956, having its registered office at 301/302, Saropatti Complex, Sardarbaug Lane, B/h Bombay Shopping Centre, Race Course, Vadodara-390007, Gujarat, India;

"RoC" means the Registrar of Companies having jurisdiction over Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5, Transferor Company 6, Transferee Company/ Resulting Company and the Demerged Company, as the case may be;

"Scheme" or "this Scheme" means this composite scheme of arrangement as modified from time to time;

"Taxation" or "Tax" or "Taxes" means all forms of taxes and statutory, governmental, state, provincial, local governmental or municipal impositions, duties, contributions and levies, whether

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levied by reference to income, profits, book profits, gains, net wealth, asset values, turnover, added value, goods and service or otherwise and shall further include payments in respect of or on account of Tax, whether by way of deduction at source, collection at source, dividend distribution tax, advance tax, minimum alternate tax, GST or otherwise or attributable directly or primarily to Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5, Transferor Company 6, Transferee Company/ Resulting Company and the Demerged Company, as the case may be or any other Person and all penalties, charges, costs and interest relating thereto;

"Tax Laws" means all Applicable Laws dealing with Taxes including but not limited to income-tax, wealth tax, sales tax / value added tax, service tax, GST, excise duty, customs duty or any other levy of similar nature;

"Transferor Company 1 and/or CNCTPL" in relation to Part-II of the Scheme means Cool N Care Technologies Private Limited a company incorporated under the provisions of the Companies Act, 1956, having its registered office at 201 Sampatti Complex, Opp Jagdish Hall, Race Course Vadodara 390007, Gujarat, India;

"Transferor Company 2 and/or S4EPL" in relation to Part-II of the Scheme means Solutions 4 Energy Private Limited, a company incorporated under the provisions of the Companies Act, 1956, having its registered office at 301/307, Sampatti Complex, Sardarbaug Lane, B/h Bombay Shopping Centre, Race Course, Vadodara-390007, Gujarat, India;

"Transferor Company 3 and/or GLPL" in relation to Part-II of the Scheme means Golf Way Leisure Private Limited, a company incorporated under the provisions of the Companies Act, 1956, having its registered office at 301/302, Sampatti Complex, Sardarbaug Lane, B/h Bombay Shopping Centre, Race Course, Vadodara-390007, Gujarat, India;

"Transferor Company 4 and/or RREPL" in relation to Part-II of the Scheme means Redcliffe Real Estate Private Limited, a company incorporated under the provisions of the Companies Act, 1956, having its registered office at 201/202, Sampatti Complex, Sardarbaug Lane, B/h Bombay Shopping Centre, Race Course, Vadodara-390007, Gujarat, India.

"Transferor Company 5 and/or HLTPL" in relation to Part-II of the Scheme means House & Life Technology Private Limited, a company incorporated under the provisions of the Companies Act, 1956, having its registered office at 301/302, Sampatti Complex, Sardarbaug Lane, B/h Bombay Shopping Centre, Race Course, Vadodara-390007, Gujarat, India;

"Transferor Company 6 and/or JABPL" in relation to Part-II of the Scheme means Jaiveek Agro Biotech Private Limited, a company incorporated under the provisions of the Companies Act, 1956, having its registered office at 202, Sampatti Complex, Sardarbaug Lane, B/h Bombay Shopping Centre, Race Course, Vadodara-390007, Gujarat, India;

"Transferee Company and/or EIPL" in relation to Part-II of the Scheme means Excelsource International Private Limited, a company incorporated under the provisions of the Companies Act, 1956, having its registered office at 301/302, Sampatti Complex, Sardarbaug Lane, B/h Bombay Shopping Centre, Race Course, Vadodara-390007, Gujarat, India;

"Tribunal" means the Ahmedabad Bench of the National Company Law Tribunal.

In this Scheme, unless the context otherwise requires:

1.2.1 words denoting the singular shall include the plural and vice versa and words denoting any gender shall include all genders;

1.2.2 headings, subheadings, titles, subtitles to clauses, sub-clauses and paragraphs are for information and convenience only and shall not form part of the operative provisions of this Scheme and shall be ignored in construing the same;

1.2.3 the words "include" and "including" are to be construed without limitation;

1.2.4 reference to a clause, paragraph or schedule is a reference to a clause, paragraph or schedule of this Scheme;

1.2.5 reference to any law or legislation or regulation shall include amendment(s), circulars, notifications, clarifications or supplement(s) to, or replacement, re-enactment,

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restatement or amendment of, that law or legislation or regulation and shall include the rules and regulations thereunder; and

1.2.6 references to days, months and years are to calendar days, calendar months and calendar years, respectively.

2. SHARE CAPITAL

2.1 The share capital of EIPL as on 31 March 2020 was as under:

Particulars	Amount (Rs)
Authorised Capital	
30,00,000 Equity Shares of Rs.10 each	3,00,00,000
TOTAL	3,00,00,000
Issued, Subscribed and Paid up Capital	1,17,13,000
11,71,300 Equity Shares of Rs.10 each, fully paid up	
TOTAL	1,17,13,000

2.2 The share capital of CNCTPL as at 31 March 2020 is as under:

Share Capital	Amount (In Rs.)
Authorised Share Capital	
1,00,000 Equity Shares of Rs. 10 each	10,00,000
TOTAL	10,00,000
Issued, subscribed and paid-up Share Capital	
10,000 Equity shares of Rs. 10 each, fully paid up	1,00,000
TOTAL	1,00,000

2.3 The share capital of SHEPL as at 31 March 2020 is as under:

Share Capital	Amount (In Rs.)
Authorised Share Capital	
5,00,00,000 Equity Shares of Rs. 1 each	5,00,00,000
TOTAL	5,00,00,000
Issued, subscribed and paid-up Share Capital	
4,92,39,250 Equity shares of Rs. 1 each, fully paid up	4,92,39,250
TOTAL	4,92,39,250

2.4 The share capital of GLPL as at 31 March 2020 is as under:

Share Capital	Amount (In Rs.)
Authorised Share Capital	
1,00,000 Equity shares of Rs. 10 each	10,00,000
TOTAL	10,00,000
Issued, subscribed and paid-up Share Capital	
1,00,000 equity shares of Rs. 10 each, fully paid up	10,00,000
TOTAL	10,00,000

2.5 The share capital of RREPL as at 31 March 2020 is as under:

Share Capital	Amount (In Rs.)
Authorised Share Capital	
5,00,000 Equity Shares of Rs. 10 each	50,00,000
TOTAL	50,00,000
Issued, subscribed and paid-up Share Capital	
10,000 Equity shares of Rs. 10 each, fully paid up	1,00,000
TOTAL	1,00,000

2.6 The share capital of IILTPL as at 31 March 2020 is as under:

Share Capital	Amount (In Rs.)
Authorised Share Capital	

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Share Capital	Amount (In Rs.)
10,00,000 Equity Shares of Rs. 10 each	1,00,00,000
TOTAL	1,00,00,000
Issued, subscribed and paid-up Share Capital	
6,92,816 equity shares of Rs. 10 each	69,28,160
TOTAL	69,28,160

2.7 The share capital of JABFL as at 31 March 2020 is as under:

Share Capital	Amount (In Rs.)
Authorised Share Capital	
30,00,00,000 Equity Shares of Rs. 10 each	3,00,00,00,000
TOTAL	3,00,00,00,000
Issued, subscribed and paid-up Share Capital	
17,68,150 equity shares of Rs. 10 each, fully paid up	1,76,81,500
TOTAL	1,76,81,500

2.8 The share capital of MRCPL as at 31 March 2020 is as under:

Share Capital	Amount (In Rs.)
Authorised Share Capital	
10,000 Equity Shares of Rs. 10 each	1,00,000
TOTAL	1,00,000
Issued, subscribed and paid-up Share Capital	
10,000 Equity shares of Rs. 10 each fully paid up	1,00,000
TOTAL	1,00,000

DATE OF TAKING EFFECT AND IMPLEMENTATION OF THIS SCHEME

This Scheme in its present form or with any modification(s), as may be approved or imposed or directed by the Tribunal, shall become effective from the Appointed Date but shall be operative from the Effective Date.

PART III

AMALGAMATION OF THE TRANSFEROR COMPANY 1, TRANSFEROR COMPANY 2, TRANSFEROR COMPANY 3, TRANSFEROR COMPANY 4, TRANSFEROR COMPANY 5 AND TRANSFEROR COMPANY 6 WITH THE TRANSFEREE COMPANY AND OTHER RELATED MATTERS

4. AMALGAMATION AND VESTING OF ASSETS AND LIABILITIES AND ENTIRE BUSINESS OF THE TRANSFEROR COMPANY 1, TRANSFEROR COMPANY 2, TRANSFEROR COMPANY 3, TRANSFEROR COMPANY 4, TRANSFEROR COMPANY 5 AND TRANSFEROR COMPANY 6

4.1 With effect from the Appointed Date, and subject to the provisions of this Scheme and pursuant to Section 232 of the Act, the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 shall stand amalgamated with the Transferee Company as a going concern and all assets, liabilities, contracts, arrangements, employees, Permits, licences, records, approvals, etc. of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 shall, without any further act, instrument or deed, stand transferred to and vested in or be deemed to have been transferred to and vested in the Transferee Company, so as to become as and from the Appointed Date, the assets, liabilities, contracts, arrangements, employees, Permits, licences, records, approvals, etc. of the Transferee Company by virtue of, and in the manner provided in this Scheme.

4.2 Without prejudice to the generality of the above and to the extent applicable, unless otherwise stated herein, with effect from the Appointed Date:

4.2.1 with respect to the assets of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 that are movable in nature or are otherwise capable of being transferred

by manual delivery or by paying over or endorsement and/ or delivery, the same may be so transferred by the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 by operation of law without any further act or execution of an instrument with the intent of vesting such assets with the Transferee Company as at the Appointed Date;

4.2.2 Subject to Clause 4.2.3 below, with respect to the assets of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6, other than those referred to in Clause 4.2.1 above, including all rights, title and interests in the agreements (including agreements for lease or license of the properties), investment in shares of any body corporate, fixed deposits, mutual funds, bonds and any other securities, sundry debtors, outstanding loans and advances, if any, recoverable in cash or in kind or for value to be received, cash and bank balances, earnest moneys and deposits, if any, with Government, semi-Government, local and other authorities and bodies, customers and other persons, whether or not the same is held in the name of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6, shall, without any further act, instrument or deed, be transferred to and vested in and/ or be deemed to be transferred to and vested in the Transferee Company, with effect from the Appointed Date by operation of law as transmission, as the case may be, in favour of Transferee Company. With regard to the licenses of the properties, the Transferee Company will enter into novation agreements, if it is so required;

4.2.3 Without prejudice to the aforesaid, all the immovable property (including but not limited to the land, buildings, offices, factories, sites, tenancy rights related thereto, and other immovable property, including accretions and appurtenances), whether or not included in the books of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6, whether freehold or leasehold (including but not limited to any other document of title, rights, interest and easements in relation thereto, and any shares in cooperative housing societies associated with such immoveable property) shall stand transferred to and be vested in the Transferee Company, as successor to the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6, without any act or deed to be done or executed by the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6, as the case may be and/ or the Transferee Company;

4.2.4 all debts, liabilities, duties and obligations (debentures, commercial paper, bonds, notes or other debt securities, loan from companies) of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 shall, without any further act, instrument or deed be transferred to, and vested in, and/ or deemed to have been transferred to, and vested in, the Transferee Company, so as to become on and from the Appointed Date, the debts, liabilities, duties and obligations of the Transferee Company on the same terms and conditions as were applicable to the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6, and it shall not be necessary to obtain the consent of any person who is a party to contract or arrangement by virtue of which such liabilities have arisen in order to give effect to the provisions of this Clause 4;

4.2.5 all the brands and trademarks (including logo and right to use the trademarks) of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 including registered and unregistered trademarks along with all rights of commercial nature including attached goodwill, title, interest, labels and brand registrations, copyrights trademarks and all such other industrial and intellectual property rights of whatsoever nature shall be transferred to the Transferee Company. The Transferee Company shall do such actions as may be necessary and permissible to get the same transferred and/ or registered in the name of the Transferee Company;

4.2.6 the vesting of the entire undertaking of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5

and Transferor Company 6, as aforesaid, shall be subject to the Encumbrances, if any, over or in respect of any of the assets or any part thereof, provided however that such Encumbrances shall be confined only to the relevant assets of Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 or part thereof on or over which they are subsisting on and no such Encumbrances shall extend over or apply to any other asset(s) of Transferee Company. Any reference in any security documents or arrangements (to which Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 is a party) related to any assets of Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 shall be deemed to be amended to the end and extent that such security shall not extend, nor be deemed to extend, to any of the other asset(s) of Transferee Company. Similarly, Transferee Company shall not be required to create any additional security over assets vested under this Scheme for any loans, debentures, deposits or other financial assistance already availed of/ to be availed of by it, and the Encumbrances in respect of such indebtedness of Transferee Company shall not extend or be deemed to extend or apply to the assets so vested;

4.2.7 on and from the Effective Date and till such time that the name of the bank accounts of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 has been replaced with that of the Transferee Company, the Transferee Company shall be entitled to maintain and operate the bank accounts of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 in the name of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 and for such time as may be determined to be necessary by the Transferee Company. All cheques and other negotiable instruments, payment orders received or presented for encashment which are in the name of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 after the Effective Date shall be accepted by the bankers of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 and credited to the account of the Transferee Company, if presented by the Transferee Company; and

4.2.8 without prejudice to the foregoing provisions of Clause 4, the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 and / or the Transferee Company shall be entitled to apply to the Appropriate Authorities as are necessary under any law for such consents, approvals and sanctions which the Transferee Company may require, and execute any and all instruments or documents and do all the acts and deeds as may be required, including filing of necessary particulars and / or modification(s) of charge, with the concerned RoC or filing of necessary applications, notices, intimations or letters with any authority or Person, to give effect to the above provisions.

4.3 This Scheme has been drawn up to comprise with the conditions relating to "Amalgamation" as specified under Section 2(1B) and other relevant provisions of the Income-tax Act, 1961. If any terms or provisions of the Scheme are found or interpreted to be inconsistent with the provisions of the said section and other related provisions at a later date including resulting from a retrospective amendment of law or for any other reason whatsoever, till the time the Scheme becomes effective, the provisions of the said section and other related provisions of the Income-tax Act, 1961 shall prevail and the Scheme shall stand modified to the extent determined necessary to comply with Section 2(1B) and other relevant provisions of the Income-tax Act, 1961.

5. EMPLOYEES, STAFF AND WORKMEN

5.1 On the Scheme becoming effective, all employees of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 on the Effective Date, shall be deemed to have become employees of the Transferee Company, without any break in their service and the terms and conditions of their employment with the Transferee Company shall not be less favourable than those applicable to them with

reference to the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 on the Effective Date. The Transferee Company undertakes to continue to abide by any agreement/settlement, if any, validly entered into by the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 with any union/employee of the Transferor Company recognized by the Transferor Company. It is hereby clarified that the accumulated balances, if any, standing to the credit of the employees in the existing provident fund, gratuity fund and superannuation fund of which the employees of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 are members shall be transferred to such provident fund, gratuity fund and superannuation fund of the Transferee Company or to be established and caused to be recognised by the Appropriate Authorities, by the Transferee Company. It is clarified that the services of the employees of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 will be treated as having been continuous, uninterrupted and taken into account for the purpose of the said funds or funds.

5.2 Pending the transfer as aforesaid, the provident fund, gratuity fund and superannuation fund dues of the employees of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 would continue to be deposited in the existing provident fund, gratuity fund and superannuation fund respectively of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6.

5.3 Without prejudice to the aforesaid, the Board of the Transferee Company, if it deems fit and subject to applicable laws, shall be entitled to retain separate funds within the Transferee Company for the erstwhile fund(s) of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6.

6 LEGAL PROCEEDINGS

6.1 Any suit, petition, appeal or other proceeding of whatsoever nature and any orders of court, judicial or quasi-judicial tribunal or other governmental authorities enforceable by or against the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 including without limitation any restraining orders (including order under section 281A of the Income-tax Act, 1961) pending before any court, judicial or quasi-judicial tribunal or any other forum, relating to the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6, whether by or against the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6, pending as on the Effective Date, shall not abate or be discontinued or in any way prejudicially affected by reason of the amalgamation of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 or of any order of or direction passed or issued in the amalgamation proceedings or anything contained in this Scheme, but by virtue of the order sanctioning the Scheme, such legal proceedings shall be continued and any prosecution shall be enforced by or against the Transferee Company in the same manner and to the same extent as would or might have been continued, prosecuted and/or enforced by or against the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6, as if this Scheme had not been implemented.

6.2 After the approval of the Scheme by the Parties and until the Effective Date, the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 shall defend all legal proceedings, other than in the ordinary course of business, with the advice and instructions of the Transferee Company.

6.3 The transfer and vesting of the assets and liabilities under the Scheme and the continuance of the proceedings by or against the Transferee Company shall not affect any transaction or proceeding already completed by the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 between the Appointed Date and the Effective Date to the end and intent that the Transferee Company accepts all acts, deeds and things done and executed by and/or on behalf of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 as acts, deeds and things done and executed by and on behalf of the

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Transferee Company

PERMITS

With effect from the Appointed Date all the Permits held or availed of by, and all rights and benefits that have accrued to, the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6, pursuant to the provisions of section 232 of the Act, shall without any further act, instrument or deed, be transferred to, and vest in, or be deemed to have been transferred to, and vested in, and be available to, the Transferee Company so as to become as and from the Appointed Date, the Permits, estates, assets, rights, title, interest and authorities of the Transferor Company and shall remain valid, effective and enforceable on the same terms and conditions to the extent permissible in Applicable Laws. Upon the Effective Date and until the Permits are transferred, vested, recorded, effected, and/ or perfected, in the record of the Appropriate Authority, in favour of the Transferee Company, the Transferee Company is authorized to carry on business in the name and style of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6, and under the relevant license and/ or permit and/ or approval, as the case may be, and the Transferee Company shall keep a record and/ or account of such transactions.

B CONTRACTS, DEEDS, ETC.

5.1 All contracts, deeds, bonds, agreements, indemnities, guarantees or other similar rights or entitlements whatsoever, schemes, arrangements and other instruments, permits, rights, entitlements, licenses (including the licenses granted by any Governmental, statutory or regulatory bodies) for the purpose of carrying on the business of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6, and in relation thereto, and those relating to tenancies, privileges, powers, facilities of every kind and description of whatsoever nature in relation to the Transferor Company, or to the benefit of which the Transferor Company may be eligible and which are subsisting or having effect immediately before this Scheme coming into effect, shall by endorsement, delivery or recordal or by operation of law pursuant to the order of the Authority sanctioning this Scheme, and on this Scheme becoming effective be deemed to be contracts, deeds, bonds, Agreements, indemnities, guarantees or other similar rights or entitlements whatsoever, schemes, arrangements and other instruments, permits, rights, entitlements, licenses (including the licenses granted by any Governmental, statutory or regulatory bodies) of the Transferee Company. It is clarified that all conditions, stipulations, pre-requisites, terms laid down under any Governmental, statutory or regulatory bodies, fulfilled by the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 prior to the Effective Date, shall be deemed to have been fulfilled and complied with by the Transferee Company, post the Effectiveness of the Scheme. The Transferee Company shall be entitled to the benefit of all qualification, expertise, track-record, experience, goodwill and all other rights, claims and powers of whatsoever nature and wheresoever situate belonging to or in the possession of or granted in favour of or enjoyed by the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 for all intents and purposes for its business. Such properties and rights described hereinabove shall stand vested in the Transferee Company and shall be deemed to be the property and became the property by operation of law as an integral part of the Transferee Company. Such contracts and properties described above shall continue to be in full force and continue as effective as hitherto in favour of or against the Transferee Company and shall be the legal and enforceable rights and interests of the Transferee Company, which can be enforced and acted upon as fully and effectually as if it were the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6.

5.2 Upon this Scheme becoming effective, the rights, benefits, privileges, duties, liabilities, obligations and interest whatsoever, arising from or pertaining to contracts and properties, shall be deemed to have been entered into and shall assigned, vested and novated to the Transferee Company by operation of law and the Transferee Company shall be deemed to be the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 substituted party or beneficiary or obligor thereto. It being always understood that the Transferee Company shall be the successor in the interest of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6. In relation to the same, any procedural requirements

required to be fulfilled solely by the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6, shall be fulfilled by the Transferee Company as if it were the duly constituted attorney of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6.

8.4 The Transferee Company may, at any time after the coming into effect of this Scheme in accordance with the provisions hereof, if so required, under any law or otherwise, enter into, or issue or execute deeds, writings, confirmations, novations, declarations, or other documents with, or in favour of any party to any contract or arrangement to which the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 is a party or any writings as may be necessary to be executed in order to give formal effect to the above provisions. The Transferee Company shall be deemed to be authorised to execute any such writings on behalf and in the name of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 and to carry out or perform all such formalities or compliances required for the purposes referred to above on the part of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6.

8.5 Without prejudice to the provisions of this Scheme, with effect from the Appointed Date, all inter-party transactions between the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 and the Transferee Company shall be considered as intra party transactions for all purposes. From the Appointed Date. Any taxes (including TDS, TCS etc.) paid in relation to such transaction shall, to the extent permissible by applicable law, be claimed as a refund.

8.6 The Transferee Company shall be entitled to the benefit of all insurance policies which have been issued in respect of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 and the name of the Transferee Company shall be substituted as "Insured" in the policies as if the Transferee Company was initially a party thereto.

8.7 Any inter-se contracts between the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 on the one hand and the Transferee Company on the other hand shall cease to operate upon the coming into effect of this Scheme.

9. TAXES/ DUTIES / CESS ETC.

9.1 The unutilized credits relating to excise duties, sales tax, service tax, VAT, GST or any other Taxes by whatever name called as applicable which remain unutilised in the electronic ledger of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 shall be transferred to and vest in the Transferee Company. Thereafter the unutilized credit so specified shall be credited to the electronic credit ledger of the Transferee Company and the input and capital goods shall be duly adjusted by the Transferee Company in its books of account.

9.2 Taxes of whatsoever nature including, advance tax, self-assessment tax, regular assessment taxes, TDS, TCS, dividend distribution tax, GST, minimum alternative tax, wealth tax, if any, paid by the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 shall be treated as paid by the Transferee Company and it shall be entitled to claim the credit, refund, adjustment for the same as may be applicable notwithstanding that challans or receipts may be in the name of Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6. Minimum Alternate Tax credit available to the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 under the Income-tax Act, 1961, if any, shall vest in and be available to the Transferee Company.

9.3 Upon scheme becoming effective, the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 (if required) and the Transferee Company are expressly permitted to revise their financial statements and its income tax returns along with prescribed forms, filings and annexures under

the Income-tax Act, 1961 and other statutory returns, including but not limited to TDS / TCS returns, service tax returns, excise tax returns, sales tax / VAT / GST returns, as may be applicable. The Transferee Company has expressly reserved the right to make such provision in its returns and to claim refunds, advance tax credits, credit of tax under Section 115JB of the Income-tax Act, 1961 read with section 115JAA of the Income Tax Act, 1961, i.e. credit of minimum alternate tax, credit of dividend distribution tax, credit of TDS, credit of TCS, credit of foreign taxes paid/withheld, etc. if any, as may be required for the purposes of/consequent to implementation of this Scheme, even if the prescribed time limits for filing or revising such returns have lapsed without incurring any liability, on account of interest, penalty or any other sum. All compliances done by Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 will be considered as compliances by Transferee Company.

It is hereby clarified that in case of any refunds, benefits, incentives, grants, subsidies, etc. under Income-tax Act, 1961, service tax laws, excise duty laws, central sales tax, applicable state value added tax laws, GST laws, any incentive scheme or policies or any other applicable laws/ regulations dealing with taxes/ duties/ levies due to Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 shall stand vested in the Transferee Company upon this Scheme becoming effective.

All tax assessment proceedings/ appeals of whatsoever nature by or against the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 pending and/or arising shall be continued and/or enforced until the Effective Date by the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6. In the event of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 failing to continue or enforce any proceeding/appeal, the same may be continued or enforced by the Transferee Company, at the cost of the Transferee Company. As and from the Effective Date, the tax proceedings shall be continued and enforced by or against the Transferee Company in the same manner and to the same extent as would or might have been continued and enforced by or against the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6.

9.6 Further, the aforementioned proceedings shall not abate or be discontinued nor be in any way prejudicially affected by reason of the amalgamation of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 with the Transferee Company or anything contained in the Scheme.

10. CONSIDERATION

10.1 Upon coming into effect of the Scheme, and in consideration for the transfer and vesting of the business of Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 with Transferee Company, Transferee Company shall, without any application or deed, issue and allot fully paid up shares to the members of Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 whose names appear in the register of members of Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 as on the Record Date 1, except where Transferee Company itself is a shareholder of Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6, or to such of their respective heirs, executors, administrators or other legal representatives or other successors in title as may be recognized by the Board of Directors of Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6, in the following ratio.

"1 (One) equity share of EIPL of Rs. 10/- each fully paid up for every 10,000 (Ten Thousand) equity shares of CHC Ltd. of Rs. 10/- each fully paid up"

"12 (Twelve) equity shares of EIPL of Rs. 10/- each fully paid up for every 10,000 (Ten Thousand) equity shares of SKEPL of Rs. 1/- each fully paid up"

"1 (One) equity share of EIPL of Rs. 10/- each fully paid up for every 20,000 (Twenty Thousand) equity shares of GLPL of Rs. 10/- each fully paid up."

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"1 (One) equity share of EIPL of Rs. 10/- each fully paid up for every 10,000 (Ten Thousand) equity shares of RREPL of Rs. 10/- each fully paid up.

"69 (Sixty nine) equity shares of EIPL of Rs. 10/- each fully paid up for every 10,000 (Ten Thousand) equity shares of HLTPL of Rs. 10/- each fully paid up"

"1 (One) equity shares of EIPL of Rs. 10/- each fully paid up for every 1,00,000 (One Lakh) equity shares of IABPL of Rs. 10/- each fully paid up "

10.2 The share held by EIPL as any of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 shall stand cancelled and there shall be no further obligation outstanding on their behalf.

10.3 EIPL shares issued, pursuant to Clause 10.1 above, shall be issued and allotted in a physical form to the equity shareholders of each of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 in the manner as stipulated in Clause 10.1 above.

In case any member's shareholding in Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 is such that on the basis of the aforesaid exchange ratio of shares, the member is entitled to a fraction of New Equity Share which exceeds one-half share, such member shall, in lieu of such fraction, be entitled to receive allotment of one New Equity Share of Transferee Company. On the other hand, if the shareholding of any member in Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 is such that on the basis of the aforesaid exchange ratio of shares, the member is entitled to a fraction of New Equity Share which is less than or equal to one-half share, then such fraction shall be ignored and such member shall not be entitled to receive any New Equity Share of Transferee Company in lieu of such fraction. However, the member shall be entitled to receive one New Equity Share if he is not entitled to receive any New Equity Shares.

10.4 Transferee Company shall take necessary steps to increase or alter, if necessary, its authorised Share Capital suitably to enable it to issue and allot the Equity shares pursuant to this Scheme.

10.5 Transferee Company, shall, if and to the extent required, apply for and obtain any approvals from concerned regulatory authorities for the issue and allotment of equity shares, under the Scheme.

10.6 Equity shares of Transferee Company to be issued to the respective shareholders of Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 as above shall be subject to the Memorandum and Articles of Association of Transferee Company and shall rank *paripassu* with the existing equity shares of Transferee Company in all respects including dividends.

10.7 Approval of this Scheme by the shareholders of Transferee Company shall be deemed to be the due compliance of the provisions of Section 62 of the Companies Act, 2013 and the other relevant and applicable provisions of the Act for the issue and allotment of equity shares by Transferee Company to the shareholders of Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6, as provided in this Scheme.

10.8 Upon the issue and allotment of New Equity Shares to the shareholders of Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6, whose names appear on the Register of Members of Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 the Record Date 2, the share certificates in relation to the shares held by them in Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 shall be deemed to have been cancelled.

11. ACCOUNTING TREATMENT IN THE BOOKS OF THE TRANSFEREE COMPANY

On the Scheme becoming effective, the Transferee Company shall account for the amalgamation in its books as under:

11.1 On the Scheme becoming effective, Transferee Company shall account for the amalgamation, in its books with effect from the Appointed Date, in accordance with the Pooling of Interest Method under Accounting Standard – 14 (Accounting for Amalgamations), as under:

11.1.1 Transferee Company shall record all the assets and liabilities, including reserves, profits and loss, of Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6, vested in it pursuant to this Scheme, at their respective book values as on the Appointed Date.

11.1.2 The inter-se inter-co balances between Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 and Transferee Company appearing in the books of accounts of Transferee Company, if any, shall stand cancelled.

11.1.3 Transferee Company shall credit in its books of account, face value of the shares issued to the shareholders of Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 pursuant to the Scheme of its share capital account.

11.1.4 The difference, if any, being excess of book value of assets over liabilities including reserves of Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 transferred to Transferee Company, after making adjustments as mentioned in Clause 11.1.2 and 11.1.3 above, shall be adjusted against reserves of Transferee Company.

11.2 In case of any differences in accounting policy between Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 and Transferee Company, the impact of the same till the Appointed Date will be quantified and adjusted to the reserves in the Balance Sheet of Transferee Company to ensure that the financial statements of Transferee Company reflect the financial position on the basis of consistent accounting policy.

11.3 It is, however, clarified that the Board of Directors of Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 and Transferee Company, in consultation with the respective statutory auditors, may account for the merger in such manner as to comply with the provisions of section 133 of the Companies Act, 2013, the applicable accounting standards and other applicable provisions, if any.

12. CONDUCT OF BUSINESS FROM APPOINTED DATE UPTO THE EFFECTIVE DATE:

12.1 The Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 with effect from the date of approval of the Scheme by Board of the Parties and until the Effective Date:

12.1.1 shall be deemed to have been carrying on and shall carry on its business and activities and shall be deemed to have held and stood possessed of and shall hold and stand possessed of the assets for and on account of, and in trust for the Transferee Company;

12.1.2 all profits or income arising or accruing to the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 and all taxes paid thereon (including but not limited to advance tax, TDS, TCS, minimum alternate tax, GST, dividend distribution tax, securities transaction tax, taxes withheld/paid in a foreign country, etc.) or losses arising or incurred by the Transferor Company shall, for all purposes, be treated as and deemed to be the profits or income, taxes or losses, as the case may be, of the Transferee Company; and

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12.1.3 all loans raised and all liabilities and obligations incurred by the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 after the Appointed Date and prior to the Effective Date, shall, subject to the terms of this Scheme, be deemed to have been raised, used or incurred for and on behalf of the Transferee Company in which the undertaking of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 shall vest in terms of this Scheme and to the extent they are outstanding on the Effective Date, shall also, without any further act or deed be and be deemed to become the debts, liabilities, duties and obligations of the Transferee Company

12.2 From the Effective Date, the Transferor Company shall carry on and shall be entitled to carry on the business of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6.

12.3 The Transferee Company shall be entitled, pending the sanction of the Scheme, to apply to the Appropriate Authority and all other agencies, departments and authorities concerned as are necessary under any law for such consents, approvals and sanctions which the Transferee Company may require, to carry on the business of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 and to give effect to the Scheme.

The Transferee Company shall be entitled to credit the tax paid including credit of the TDS, TCS and input tax credit under the GST law in relation to The Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6, for the period between the Appointed Date and the Effective Date.

For the purpose of giving effect to the amalgamation order passed under Sections 230 to 232 and other applicable provisions of the Act in respect of this Scheme by the Authority, the Transferee Company shall, at any time pursuant to the orders approving this Scheme, be entitled to get the records of the change in the legal right upon the amalgamation of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6, in accordance with the provisions of Sections 230 to 232 of the Act. The Transferee Company is and shall always be deemed to have been authorized to execute any pleadings, applications, forms, etc, as may be required to remove any difficulties and facilitate and carry out any formalities or compliances as are necessary for the implementation of this Scheme.

13. SAVING OF CONCLUDED TRANSACTIONS

The vesting of the undertaking of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 as above and the continuance of proceedings by or against the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 shall not affect any transaction or proceedings already concluded on or after the Appointed Date till the Effective Date in accordance with this Scheme, to the end and intent that the Transferee Company accepts and adopts all acts, deeds and things done and executed by the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 in respect thereto as done and executed on behalf of the Transferee Company.

14. COMBINATION OF AUTHORISED SHARE CAPITAL

14.1 Upon the Scheme becoming effective, the authorised share capital of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 will get amalgamated with that of the Transferee Company without payment of any additional fees and duties as the said fees have already been paid. The authorised share capital of the Transferee Company will automatically stand increased to that effect by simply filing the requisite forms with the Registrar of Companies and no separate procedure or instrument or deed or payment of any stamp duty and registration fees shall be required to be followed under the Act.

14.2 The authorised share capital of the Transferee Company as on the Effective Date shall,

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accordingly, without any further act, matter, or thing, stand increased to Rs. 12,70,00,000/- (Rupees Twelve Crores Seventy Lakhs Only) divided into 1,27,00,000/- (One Crore Twenty Seven Lakhs Only) equity Shares of Rs. 10/- each. The existing capital Clause V contained in the Memorandum of Association of the Transferor Company shall without any act, instrument or deed be and stand altered, modified and amended pursuant to Sections 13, 61 and 64 of the Act and section 232 and other applicable provisions of the Act, as set out below:

Memorandum of Association

"The Authorised Share Capital of the Company is Rs. 12,70,00,000/- (Rupees Twelve Crores Seventy Lakhs Only) divided into 1,27,00,000/- (One Crore Twenty Seven Lakhs Only) Equity Shares of INR 10 each;

14.3 It is clarified that the approval of this Scheme under Sections 230 to 232 of the Companies Act, 2013 shall also be deemed to be approvals under sections 13, 61, 64 of the Companies Act, 2013 and other applicable provisions of the Act and any other consents and approvals required in this regard to give effect to the increase in authorised share capital. The filing of the certified copy of this Scheme as sanctioned by the Tribunal, in terms of Section 230 to 232 of the Act and any other applicable provisions of the Act, together with the order of the Tribunal and a printed copy of the Memorandum of Association for the purpose of the applicable provisions of the Act and the RoC shall register the same and make the necessary alterations in the Memorandum of Association of the Transferee Company accordingly and shall certify the registration thereof in accordance with the applicable provisions of the Act.

15. VALIDITY OF EXISTING RESOLUTIONS, ETC.

Upon the coming into effect this Scheme, the resolutions/ power of attorney (if) executed by the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6, as are considered necessary by the Board of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6, and that are valid and subsisting on the Effective Date, shall continue to be valid and subsisting and be considered as resolutions and power of attorney passed/ executed by the Transferee Company, and if any such resolutions have any monetary limits approved under the provisions of the Act, or any other applicable statutory provisions, then said limits as are considered necessary by the Board of the Transferee Company shall be added to the limits, if any, under like resolutions passed by the Transferee Company and shall constitute the aggregate of the said limits of the Transferee Company.

16. DISSOLUTION OF THE TRANSFEROR COMPANY 1, TRANSFEROR COMPANY 2 AND TRANSFEROR COMPANY 3, TRANSFEROR COMPANY 4, TRANSFEROR COMPANY 5 AND TRANSFEROR COMPANY 6

Upon the effectiveness of this Scheme, the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 shall be dissolved without winding up, and the Board and any committees thereof of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 shall without any further act, instrument or deed be and stand ceased and discharged. The name of the Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 and Transferor Company 6 shall be struck off from the records of the RoC and the Transferee Company shall make necessary filings in this regard and no separate consent / approval of the Transferee's shareholders shall be required under applicable provisions of the Act.

PART III

DEMERGER AND VESTING OF THE DEMERGED UNDERTAKING INTO THE RESULTING COMPANY

17. DEMERGER AND VESTING OF THE DEMERGED UNDERTAKING

17.1 With effect from the Appointed Date and subject to the provisions of this Scheme and pursuant to Sections 230 to 232 of the Act, and in accordance with Section 2(19AA) of the Income Tax Act, the Demerged Undertaking along with all its assets, liabilities, investments , contracts, arrangements, employees, Permits, records etc. shall, without any further act, instrument or deed, be demerged from the Demerged Company, and transferred to and be vested in or be

deemed to have been transferred to and vested in the Resulting Company as a going concern so as to become as on and from the Appointed Date, the assets, liabilities, investments, contracts, arrangements, employees, Permits, records etc. of the Resulting Company by virtue of operation of law and in the manner provided in this Scheme.

17.2 In respect of such of the assets and properties forming part of the Demerged Undertaking which are movable in nature (including but not limited to all intangible assets) or are otherwise capable of transfer by delivery or possession or by endorsement, the same shall stand transferred by the Demerged Company to the Resulting Company upon coming into effect of this Scheme and shall, *ipso facto* and without any other order to this effect, become the assets and properties of the Resulting Company without requiring any deed or instrument of conveyance for transfer of the same.

17.3 All rights, title and interests in the agreements (including agreements for lease or license of the properties), investments in shares, mutual funds, bonds and any other securities, sundry debtors, claims from customers or otherwise, outstanding loans and advances, if any, recoverable in cash or in kind or for value to be received, bank balances and deposits, if any, with any Appropriate Authority, customers and other Persons, whether or not the same is held in the name of the Demerged Company, the same shall, without any further act, instrument or deed, be transferred to and vested in and/or be deemed to be transferred to and vested in the Resulting Company, with effect from the Appointed Date by operation of law as transmission in favour of Resulting Company. With regard to the licenses of the properties, the Resulting Company will enter into novation agreements, if it is so required.

17.4 In respect of such of the assets and properties forming part of the Demerged Undertaking which are immovable in nature, whether or not reflected in the books of the Demerged Company, including rights, interest and easements in relation thereto, the same shall stand transferred to and be vested in the Resulting Company with effect from the Appointed Date, without any act or deed or conveyance being required to be done or executed by the Demerged Company and/or the Resulting Company.

17.5 Notwithstanding anything contained in this Scheme, with respect to the immovable properties comprised in the Demerged Undertaking in the nature of land and buildings situated in states other than the state of Gujarat, whether owned or leased, for the purpose of, *inter alia*, payment of stamp duty and vesting in the Resulting Company, if the Resulting Company so decides, the Parties, whether before or after the Effective Date, may execute and register or cause to be executed and registered, separate deeds of conveyance or deeds of assignment of lease, as the case may be, in favour of the Resulting Company in respect of such immovable properties. Each of the immovable properties, only for the purposes of the payment of stamp duty (if required under Applicable Law), shall be deemed to be conveyed at a value determined by the relevant authorities in accordance with the applicable circle rates. The transfer of such immovable properties shall form an integral part of this Scheme.

17.6 The Demerged Company may, at its sole discretion but without being obliged to, give notice in such form as it may deem fit and proper, to such Persons, as the case may be, that any debt, receivable, bill, credit, loan, advance, debenture or deposit relating to the Demerged Undertaking stands transferred to and vested in the Resulting Company and that appropriate modification should be made in their respective books/records to reflect the aforesaid changes.

17.7 Upon effectiveness of the Scheme, all debts, liabilities, debentures, loans, obligations and duties of the Demerged Company as on the Appointed Date and relatable to the Demerged Undertaking ("Demerged Liabilities") shall, without any further act, instrument or deed, be and stand transferred to and be deemed to be transferred to the Resulting Company to the extent that they are outstanding as on the Appointed Date and the Resulting Company shall meet, discharge and satisfy the same. The term "Demerged Liabilities" shall include without limitation:

17.7.1 the debts, liabilities, debentures and obligations incurred and duties of any kind, nature or description (including contingent liabilities) which arise out of the activities or operations of the Demerged Undertaking;

17.7.2 the specific loans, credit facilities, overdraft facilities and borrowings (including debentures, bonds, notes and other debt securities) raised, incurred and utilized solely for the activities or operations of the Demerged Undertaking, including Loan; and

17.7.3 in cases other than those referred to in Clause 17.7.1 or 17.7.2 above, so much of the amounts of general or multipurpose borrowings, if any, of the Demerged Company, as

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stand in the same proportion which the value of the assets transferred pursuant to the demerger of the Demerged Undertaking bear to the total value of the assets of the Demerged Company immediately prior to the Appointed Date.

In so far as indirect tax liabilities are concerned, in particular, any liability with respect to the GST, value added tax, purchase tax, sales tax or any other duty or tax in relation to the Demerged Undertaking and pertaining to the period prior to the Appointed Date, including all or any liability pertaining to the period prior to the Appointed Date, shall be treated as liability of the Resulting Company, to the extent permissible under Applicable Law.

17.8 In so far as any Encumbrance in respect of Demerged Liabilities is concerned, such Encumbrance shall, without any further act, instrument or deed being required to be taken or modified, be extended to and shall operate only over the assets comprised in the Demerged Undertaking which have been Encumbered in respect of the Demerged Liabilities as transferred to the Resulting Company pursuant to the Scheme. Provided that, if any of the assets comprised in the Demerged Undertaking which are being transferred to the Resulting Company pursuant to this Scheme have not been Encumbered in respect of the Demerged Liabilities, such assets shall remain unencumbered and the existing Encumbrance referred to above shall not be extended to and shall not operate over such assets. The absence of any formal amendment which may be required by a lender or trustee or third party shall not affect the operation of the above. For the avoidance of doubt, it is hereby clarified that in so far as the assets comprising the Remaining Business are concerned, the Encumbrance, if any, over such assets relating to the Demerged Liabilities shall without any further act, instrument or deed being required, be released and the Demerged Company shall be discharged from the obligations and Encumbrances relating to the same. Further, in so far as the assets comprised in the Demerged Undertaking are concerned, the Encumbrance over such assets relating to any loans, borrowings or other debts which are not transferred to the Resulting Company pursuant to this Scheme and which continue with the Demerged Company shall without any further act, instrument or deed be released from such Encumbrance and shall no longer be available as security in relation to such liabilities.

If the Demerged Company are entitled to any unutilized credits (including accumulated losses and unabsorbed depreciation), benefits under the state or central fiscal / investment incentive schemes and policies or concessions relating to the Demerged Undertaking under any Tax law or Applicable Law, the Resulting Company shall be entitled, as an integral part of the Scheme, to claim such benefit or incentives or unutilised credits as the case may be without any specific approval or permission. Without prejudice to the generality of the foregoing, in respect of unutilized credit of TDS, credit of TCS, Minimum Alternate Tax credits, advance tax and input credits of GST of the Demerged Company, the portion which will be attributed to the Demerged Undertaking and be transferred to the Resulting Company shall be determined by the Board of the Demerged Company in accordance with the Applicable Law.

17.10 Notwithstanding anything to the contrary contained in the provisions of this Scheme, upon the Scheme coming into effect, the Resulting Company shall be entitled to carry forward, avail of, or set off any accumulated tax losses and unabsorbed tax depreciation of the Demerged Company relating to the Demerged Undertaking as on the Appointed Date in accordance with the provisions of section 72A of the Income Tax Act, 1961.

17.11 All taxes, including income tax, GST, central sales tax, service tax, transfer tax and the like paid or payable by the Demerged Company in respect of the operations and/or profit of the Demerged Undertaking before the Appointed Date, shall be on account of Demerged Company and, insofar as it relates to the tax payment (including with limitation, income tax, GST, central sales tax, service tax, value added tax, transfer tax etc.) whether by way of deduction at source, advance tax or otherwise howsoever, by Demerged Company in respect of the profits or activities or operation of the Demerged Undertaking, if any, after the Appointed date, the shall be on account of Resulting Company and be deemed to be the corresponding item paid by Resulting Company, in all proceedings, be dealt with accordingly.

17.12 In respect of the inter-company transactions between the Appointed Date and the Effective Date of the Scheme, GST charged by the seller/service provider to service recipient / buyer would be available as Input Tax Credit to the recipient entity / buyer. TDS deducted by the recipient entity / buyer would be available as credit to the seller / service provider and TCS collected by the seller / service provider to recipient / buyer, despite such transactions getting disregarded or getting cancelled.

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17.13 Upon the Scheme becoming effective, the Demerged Company and the Resulting Company shall have the right to revise their respective financial statements and returns along with prescribed forms, filings and annexures under the Tax laws and to claim refunds and/or credit for Taxes paid and for matters incidental thereto, if required, to give effect to the provisions of this Scheme, even if the prescribed limits or revising such returns have lapsed without incurring any liability on account of interest, penalty or any other sum. It is further clarified that the Resulting Company shall be entitled to claim deduction under Section 43B, Section 40(a)(ii) and section 40(a)(ia) of the Income Tax Act in respect of unpaid liabilities transferred to it as part of the Demerged Undertaking to the extent not claimed by the Demerged Company, as and when the same are paid subsequent to Appointed Date.

17.14 Subject to Clause 18 and any other provisions of the Scheme, in respect of any refund, benefit, incentive, grant or subsidy in relation to or in connection with the Demerged Undertaking, the Demerged Company shall, if so required by the Resulting Company, issue notices in such form as the Resulting Company may deem fit and proper, stating that pursuant to the Tribunal having sanctioned this Scheme, the relevant refund, benefit, incentive, grant or subsidy be paid or made good to or held on account of the Resulting Company, as the Person entitled thereto, to the end and intent that the right of the Demerged Company to recover or realise the same stands transferred to the Resulting Company and that appropriate entries should be passed in their respective books to record the aforesaid changes.

17.15 On and from the Effective Date, all cheques and other negotiable instruments and payment orders received or presented for encashment which are in the name of the Demerged Company and are in relation to or in connection with the Demerged Undertaking, shall be accepted by the bankers of the Resulting Company, and credited to the account of the Resulting Company, if presented by the Resulting Company.

17.16 Without prejudice to the provisions of the foregoing sub-clauses of Clause 18 and upon the effectiveness of this Scheme, the Demerged Company and the Resulting Company may execute any and all instruments or documents and do all acts, deeds and things as may be required, including filing of necessary particulars and/or modification(s) of charge with the concerned ROC or filing of necessary applications, notices, intimations or letters with any Appropriate Authority or Person to give effect to the Scheme.

18. PERMITS

18.1 With effect from the Appointed Date, the Permits relating to the Demerged Undertaking shall be transferred to and vested in the Resulting Company and the concerned licensor and grantors of such Permits shall endorse where necessary and record the name of Resulting Company on such Permits so as to empower and facilitate the operation and vesting of the Demerged Undertaking in the Resulting Company and continuation of operations pertaining to the Demerged Undertaking in the Resulting Company without any hindrance and the Permits shall stand transferred to and vested in, and shall be deemed to be transferred to and vested in the Resulting Company without any further act, instrument or deed and shall be appropriately mutated by the Appropriate Authorities concerned therewith in favour of the Resulting Company as if the same were originally given by, issued to or executed in favour of the Resulting Company and the Resulting Company shall be bound by, the terms thereof, the obligations and duties thereunder, and the rights and benefits thereunder shall be available to the Resulting Company.

18.2 The benefit of all Permits pertaining to the Demerged Undertaking shall, without any other order to this effect, transfer to and vest in and become available to the Resulting Company pursuant to the sanction of this Scheme by the Tribunal.

18.3 Notwithstanding the generality of the foregoing provisions, all electricity, gas, water and other utility connections and tariff rates in respect thereof sanctioned by various public sector and private companies, boards, agencies and authorities in different states pertaining to the Demerged Undertaking, together with security deposits and all other advances paid, shall stand automatically transferred in favour of the Resulting Company on the same terms and conditions without any further act, instrument, deed, matter or thing being made, done or executed.

19. CONTRACTS

19.1 All contracts, deeds, bonds, agreements, indemnities, guarantees or other similar rights or entitlements whatsoever, schemes, arrangements and other instruments, rights, entitlements,

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licenses for the purpose of carrying on the business of the Demerged Undertaking and other assets pertaining to the Demerged Undertaking, and in relation thereto, and those relating to tenancies, rights, powers, facilities of every kind and description of whatsoever nature in relation to the Demerged Undertaking, or to the benefit of which the Demerged Company may be eligible and which are subsisting or having effect immediately before this Scheme coming into effect, shall by endorsement, by delivery or recordal or by operation of law pursuant to the order of the Tribunal sanctioning the Scheme, and on this Scheme becoming effective be deemed to be contracts, deeds, bonds, agreements, indemnities, guarantees or other similar rights or entitlements whatsoever, schemes, arrangements and other instruments, rights, entitlements and licenses (including licenses granted by any Appropriate Authority) of the Resulting Company. Such properties and rights described hereinabove shall stand vested in the Resulting Company and shall be deemed to be the property and become the property by operation of law as an integral part of the Resulting Company. Such contracts and properties described above shall continue to be in full force and continue as effective as hitherto in favour of or against the Resulting Company and shall be the legal and enforceable rights and interests of the Resulting Company, which can be enforced and acted upon as fully and effectually as if it were the Demerged Company. Upon this Scheme becoming effective, the rights, benefits, privileges, duties, liabilities, obligations and interest whatsoever, arising from or pertaining to contracts and properties relating to the Demerged Undertaking, shall be deemed to have been entered into and shall assigned, vested and novated to the Resulting Company by operation of law and the Resulting Company shall be deemed to be the Demerged Company' substituted party or beneficiary or pleader thereof, it being always understood that the Resulting Company shall be the successor in interest of the Demerged Company in relation to the properties or rights mentioned hereinabove

19.2 Without prejudice to the other provisions of this Scheme and notwithstanding the fact that vesting of the Demerged Undertaking occurs by virtue of this Scheme, the Resulting Company may, at any time after the coming into effect of this Scheme, in accordance with the provisions hereof, if so required under any Applicable Law or otherwise, take such actions and execute such deeds (including deeds of adherence), confirmations, other writings or tripartite arrangements with any party to any contract or arrangement to which the Demerged Company is a party or any writings as may be necessary in order to give effect to the provisions of this Scheme. With effect from the Appointed Date, the Resulting Company shall, under the provisions of this Scheme, be deemed to be authorized to execute any such writings on behalf of the Demerged Company and to carry out or perform all such formalities or compliances referred to above, on the part of the Demerged Company with respect to Demerged Undertaking.

19.3 On and from the Effective Date, and thereafter, the Resulting Company shall be entitled to enforce all pending contracts and transactions and issue credit notes on behalf of the Demerged Company, in relation to or in connection with the Demerged Undertaking, in the name of the Resulting Company in so far as it may be necessary until the transfer of rights and obligations of the Demerged Undertaking to the Resulting Company under this Scheme have been given effect to under such contracts and transactions.

20. EMPLOYEES, STAFF AND WORKMEN

20.1 Upon the effectiveness of this Scheme and with effect from the Effective Date, the Resulting Company undertakes to engage, without any interruption in service, all employees, staff and workmen of the Demerged Company engaged in or in relation to the Demerged Undertaking, on terms and conditions no less favourable than those on which they are engaged by the Demerged Company. The Resulting Company undertakes to continue to abide by any agreement, settlement or arrangement entered into or deemed to have been entered into by the Demerged Company with any of the aforesaid employees or unions representing them. The Resulting Company agrees that the services of all such employees with the Demerged Company prior to the demerger shall be taken into account for the purposes of all existing benefits to which the said employees may be eligible, including for the purpose of payment of any retrenchment compensation, gratuity and other retiral/ terminal benefits. The decision on whether or not an employee is part of the Demerged Undertaking shall be decided by the Demerged Company, and such decision shall be final and binding on all concerned Parties.

20.2 The accumulated balances, if any, standing to the credit of the aforesaid employees in the existing provident fund, gratuity fund and superannuation fund of which they are members, as the case may be, will be transferred respectively to such provident fund, gratuity fund and superannuation

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funds nominated by the Resulting Company and/or such new provident fund, gratuity fund and superannuation fund to be established in accordance with Applicable Law and caused to be recognized by the Appropriate Authorities, by the Resulting Company. Pending the transfer as aforesaid, the provident fund, gratuity fund and superannuation fund dues of the said employees would be continued to be deposited in the existing provident fund, gratuity fund and superannuation fund respectively of the Demerged Company.

21. LEGAL PROCEEDINGS

21.1 Upon coming into effect of the Scheme, all suits, actions, administrative proceedings, tribunals proceedings, show cause notices, demands and legal proceedings of whatsoever nature by or against the Demerged Company pending and/or arising on or before the Appointed Date or which may be instituted any time thereafter and in each case relating to the Demerged Undertaking shall not abate or be discontinued or be in any way prejudicially affected by reason of this Scheme or by anything contained in this Scheme but shall be continued and be enforced by or against the Resulting Company with effect from the Appointed Date in the same manner and to the same extent as would or might have been continued and enforced by or against the Demerged Company. Except as otherwise provided herein, the Demerged Company shall in no event be responsible or liable in relation to any such legal or other proceedings that stand transferred to the Resulting Company. The Resulting Company shall be replaced/added as party to such proceedings and shall prosecute or defend such proceedings at its own cost, in cooperation with the Demerged Company, and the liability of the Demerged Company shall consequently stand nullified. The Demerged Company shall in no event be responsible or liable in relation to any such legal or other proceedings in relation to the Demerged Undertaking.

21.2 The Resulting Company undertakes to have all legal and other proceedings initiated by or against the Demerged Company transferred to its name as soon as is reasonably practicable after the Effective Date and to have the same continued, prosecuted and enforced by or against the Resulting Company to the exclusion of the Demerged Company on priority. Both Parties shall make relevant applications and take all steps as may be required in this regard.

21.3 Notwithstanding anything contained hereinabove, if at any time after the Effective Date, the Demerged Company is in receipt of any demand, claim, notice and/ or is impleaded as a party in any proceedings before any Appropriate Authority, in each case in relation to the Demerged Undertaking, the Demerged Company shall, in view of the transfer and vesting of the Demerged Undertaking pursuant to this Scheme, take all such steps in the proceedings before the Appropriate Authority to replace the Demerged Company with the Resulting Company. However, if the Demerged Company is unable to get the Resulting Company replaced in such proceedings, the Demerged Company shall defend the same or deal with such demand in accordance with the advice of the Resulting Company and at the cost of the Resulting Company and the latter shall reimburse to the Demerged Company all liabilities and obligations incurred by the Demerged Company in respect thereof.

21.4 This Scheme complies with the definition of "demerger" as per Sections 2(19AA), 2(19AAA), 2(41A), 47, 72A and other provisions of the Income Tax Act. If any terms of this Scheme are found to be or interpreted to be inconsistent with provisions of the Income Tax Act, then this Scheme shall stand modified to be in compliance with Section 2(19AA) of the Income Tax Act.

22. CONSIDERATION

22.1 Upon this Scheme becoming effective and upon vesting of the Demerged Undertaking of Demerged Company in Resulting Company in terms of this Scheme and in consideration for the Demerger of the Demerged Undertaking into Resulting Company, Resulting Company shall without any further application or deed, issue and allot shares, credited as fully paid up, to all the equity shareholders of Demerged Company whose names appear in the Register of Members of Demerged Company as on the Record Date 2, except where Resulting Company itself is a shareholder of Demerged Company, or to such of their respective heirs, executors, administrators or other legal representatives or other successors in title as may be recognized by the Board of Directors of Demerged Company, in the following ratio:

"2354 (Two Thousand Three Hundred Fifty Four) Equity Shares of Rs. 10/- each per share of ChPL for every 100 (One Hundred) fully paid up equity shares of Rs. 10/- each held in MSCPL."

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22.4 Resulting Company shares issued, pursuant to Clause 22.1 above, shall be issued and allotted in a physical form to the equity shareholders of each of the Demerged Company, in the manner as stipulated in Clause 22.1 above.

22.5 In case any member's shareholding in Demerged Company is such that on the basis of the aforesaid exchange ratio of shares, the member is entitled to a fraction of New Equity Shares which exceeds one-half share, such member shall in lieu of such fraction, be entitled to receive allotment of one New Equity Share of Resulting Company. On the other hand, if the shareholding of any member in Demerged Company is such that on the basis of the aforesaid exchange ratio of shares, the member is entitled to a fraction of New Equity Share which is less than or equal to one-half share, then such fraction shall be ignored and such member shall not be entitled to receive any New Equity Share of Resulting Company in lieu of such fraction. However, the member shall be entitled to receive one New Equity Share if he is not entitled to receive any New Equity Share.

22.6 Resulting Company shall take necessary steps to increase or alter, if necessary, its authorized Share Capital suitably to enable it to issue and allot the Equity share pursuant to this Scheme.

22.5 Resulting Company, shall, if and to the extent required, apply for and obtain any approvals from concerned regulatory authorities for the issue and allotment of equity shares, under the Scheme.

22.6 Equity Shares of Resulting Company to be issued to the respective shareholders of Demerged Company as above shall be subject to the Memorandum and Articles of Association of Transferee Company.

22.7 Approval of this scheme by the shareholders of Resulting Company shall be deemed to be due compliance of the provisions of Section 62 of the Companies Act, 2013 and the other relevant and applicable provisions of the Act for the issue and allotment of Equity Shares by Resulting Company to the shareholders of Demerged Company as provided in this Scheme.

23. ACCOUNTING TREATMENT

The Demerged Company and Resulting Company shall comply with applicable accounting standards in relation to the underlying transactions in the Scheme including but not limited to the following:

Accounting Treatment in the books of Demerged Company

23.1 Upon the Scheme becoming effective, Demerged Company shall account for demerger in its books of accounts with effect from the Appointed Date in the following manner:

23.1.1 Demerged Company shall reduce the book value of assets and liabilities relating or pertaining to the Demerged Undertaking transferred to Resulting Company from its books of accounts as appearing in its books at the close of business on the day immediately preceding the Appointed Date.

23.1.2 The excess or deficit of the book value of assets transferred over the book value of liabilities transferred shall be adjusted in Reserves & Surplus of the Demerged Company.

Accounting Treatment in the books of the Resulting Company:

23.2 Upon the Scheme becoming effective, Resulting Company shall account for demerger in its books of accounts with effect from the Appointed Date in the following manner:

23.2.1 All the assets and liabilities recorded in the books of Demerged Company related to Demerged Undertaking shall be transferred to and vested in Resulting Company pursuant to the Scheme and shall be recorded by Resulting Company at their respective book values.

23.2.2 Resulting Company shall credit to its Share Capital Account, face value of the Equity Shares issued to the shareholders of Demerged Company pursuant to the Scheme.

23.2.3 The excess, if any, remaining after recording above entries shall be credited to Capital Reserve Account or deficit, if any, shall be debited in General Reserve Account by the

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Resulting Company, as the case may be.

23.2.4 In case of any difference in the accounting policies of the Demerged Company and the Resulting Company, the impact of the same will be quantified and adjusted in the reserves of the Resulting Company to ensure that the financial statements of the Resulting Company reflect the financial position on the basis of consistent accounting policy.

24. Inter-Company balances, loans and advances, and other balances and obligations, if any, will stand cancelled.

25. In case of any differences in accounting policy of Demerged Company and Resulting Company related to the Demerged Undertaking, then accounting policies followed by Resulting Company will prevail and the difference till the Appointed Date shall be adjusted against Capital Reserve of Resulting Company, to ensure that the financial statements of Resulting Company reflect the financial position on the basis of consistent accounting policy.

26. It is, however, clarified that the Board of Directors of Demerged Company and Resulting Company, in consultation with the respective statutory auditors, may account for the demerger in such manner as to comply with the provisions of section 133 of the Companies Act, 2013, the applicable accounting standards and other applicable provisions, if any.

27. CONDUCT OF BUSINESS FROM APPOINTED DATE UPTO THE EFFECTIVE DATE:

27.1 In case the Effective Date is later than the Appointed Date, the Demerged Company with effect from the Appointed Date and up to and including the Effective Date:

27.1.1 shall be deemed to have been carrying on and shall carry on its business and activities in relation to the Demerged Undertaking and shall be deemed to have held and stood possessed of the Demerged Undertaking and shall hold and stand possessed of the assets of the Demerged Undertaking for and on account of, and in trust for the Resulting Company;

27.1.2 all profits or income arising or accruing to the Demerged Company in relation to the Demerged Undertaking and all taxes paid thereon (including but not limited to advance tax, tax deducted at source, GST, minimum alternate tax, dividend distribution tax, securities transaction tax, taxes withheld/paid in a foreign country, etc.) or losses arising or incurred by the Demerged Company shall, for all purposes, be treated as and deemed to be the profits or income, taxes or losses of the Resulting Company;

27.1.3 all loans raised and all liabilities and obligations incurred by the Demerged Company after the Appointed Date and prior to the Effective Date in relation to the Demerged Undertaking, shall, subject to the terms of this Scheme, be deemed to have been raised, used or incurred for and on behalf of the Resulting Company, in which the relevant Demerged Undertaking shall vest in terms of this Scheme and to the extent they are outstanding on the Effective Date, shall also, without any further act, instrument or deed be and be deemed to become the debts, liabilities, duties and obligations of the Resulting Company.

27.1.4 The Resulting Company shall be entitled to credit the tax paid including credit of the tax deducted at source, advance tax, dividend distribution tax, securities transaction tax, taxes withheld/paid in a foreign country, input tax credit under the GST law etc. in relation to the Demerged Company, for the period between the Appointed Date and the Effective Date.

27.2 For the purpose of giving effect to the order passed under Sections 230 to 232 and other applicable provisions of the Act in respect of this Scheme by the Tribunal, the Resulting Company shall, at any time pursuant to the orders approving this Scheme, be entitled to get the recordal of the change in the legal rights upon the demerger of the Demerged Undertaking, in accordance with the provisions of Sections 230 to 232 of the Act. The Resulting Company shall always be deemed to have been authorized to execute any pleadings, applications, forms etc., as may be required to remove any difficulties and facilitate and carry out any formalities or compliances as are necessary for the implementation of this Scheme. For the purpose of giving effect to the vesting order passed under Section 232 of the Act in respect of this Scheme, the Resulting

Company, shall be entitled to exercise all rights and privileges and be liable to pay all taxes and charges and fulfil all obligations in relation to or applicable to all immovable properties, including mutation and/or substitution of the ownership or the title to or interest in the immovable properties which shall be made and duly recorded by the Appropriate Authorities in favour of the Resulting Company, pursuant to the sanction of this Scheme by the Tribunal and upon the effectiveness of this Scheme in accordance with the terms hereof, without any further act or deed to be done or executed by the Resulting Company. It is clarified that the Resulting Company shall be entitled to engage in such correspondence and make such representations, as may be necessary for the purposes of the aforesaid mutation and/or substitution.

28. REMAINING BUSINESS

28.1 The Remaining Business of the Demerged Company and all the assets, liabilities and obligations pertaining thereto shall continue to belong to and be vested in and be managed by the Demerged Company subject to the provisions of the Scheme.

28.2 All Proceedings by or against the Demerged Company under any statute, pending on the Effective Date and relating to the Remaining Business of Demerged Company (including those relating to any property, right, power, liability, obligation or duties of the Demerged Company in respect of its Remaining Business) shall be continued and enforced by or against Demerged Company. The Resulting Company shall in no event be responsible or liable in relation to any such Proceedings by or against the Demerged Company.

PART IV
GENERAL TERMS & CONDITIONS

29. PROPERTY IN TRUST

29.1 Notwithstanding anything contained in this Scheme, on or after Effective Date, until any property, asset, license, approval, permission, contract, agreement and rights and benefits arising therefrom pertaining to the Demerged Undertaking are transferred, vested, recorded, effected and/or perfected in the records of any Appropriate Authority, regulatory bodies or otherwise, in favour of the Resulting Company, such company is deemed to be authorized to enjoy the property, asset or the rights and benefits arising from the license, approval, permission, contract or agreement as if it were the owner of the property or asset or as if it were the original party to the license, approval, permission, contract or agreement. It is clarified that till entry is made in the records of the Appropriate Authorities and till such time as may be mutually agreed by the relevant Parties, the Demerged Company will continue to hold the property and/or the asset, license, permission, approval, contract or agreement and rights and benefits arising therefrom, as the case may be, in trust for and on behalf of the Resulting Company.

30. APPLICATIONS/PETITIONS TO THE TRIBUNAL

30.1 The Parties shall dispatch, make and file all applications and petitions under Sections 230 to 232 and other applicable provisions of the Act before the Tribunal, under whose jurisdiction the registered offices of the respective Parties are situated, for sanction of this Scheme under the provisions of Applicable Law and shall apply for such approvals as may be required under Applicable Law.

30.2 The Parties shall be entitled, pending the sanction of the Scheme, to apply to any Appropriate Authority, if required under any Applicable Law for such consents and approvals which the Parties may require to own the assets and/or liabilities of the respective Undertaking and to carry on the business of the respective Undertaking.

31. MODIFICATION OR AMENDMENTS TO THIS SCHEME

31.1 On behalf of each of the Parties, the Board of the respective Parties acting themselves or through authorized Persons, may consent jointly but not individually, on behalf of all Persons concerned, to any modifications or amendments to this Scheme at any time and for any reason whatsoever, or to any conditions or limitations that the Tribunal or any other Appropriate Authority may deem fit to direct or impose or which may otherwise be considered necessary, desirable or appropriate by all of them (i.e., the Boards of the Parties) and solve all difficulties that may arise for carrying out this Scheme and do all acts, deeds and things necessary for putting this Scheme into effect.

31.7 For the purposes of giving effect to the Scheme or to any modification hereof, the Boards of the Parties acting themselves or through authorized Persons may jointly but not individually, give and are jointly authorized to give such directions including directions for settling any question of doubt or difficulty that may arise and such determination or directions, as the case may be, shall be binding on all Parties, in the same manner as if the same were specifically incorporated in this Scheme.

31.8 The Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5, Transferor Company 6, Resulting Company and/or Transferee Company and the Demerged Company shall each be at liberty to withdraw the scheme in entirety in case any condition or alteration imposed by the Tribunal or appropriate authority is unacceptable to them or as may otherwise be deemed expedient or necessary

31.9 In the event of revocation/withdrawal of the Scheme, no rights and liabilities whatsoever shall accrue to or be incurred inter-se Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5, Transferor Company 6, Resulting Company and/or Transferee Company, and the Demerged Company or the respective shareholders or creditors or employees or any other persons except in respect of any act or deed done prior thereto as is contemplated hereunder or as to any right, liability or obligation which has arisen or accrued pursuant thereto and which shall be governed and preserved or walk out as is specifically provided in the Scheme or in accordance with the applicable law and as agreed between the parties and in such case, each party shall bear its own cost unless mutually agreed.

31.10 It is hereby clarified that submission of the Scheme to the Tribunal and to the Appropriate Authorities for their respective approvals is without prejudice to all rights, interests, titles or defences that the Parties may have under or pursuant to all Applicable Law.

31.11 On the approval of this Scheme by the shareholders of the Parties and such other classes of Persons relating to the Parties, if any, such shareholders and classes of Persons shall also be deemed to have resolved and accorded all relevant consents under the Act or otherwise to the same extent applicable to all the matters related or arising pursuant to the Scheme.

32. COSTS AND EXPENSES

All costs, charges and expenses payable in relation to or in connection with this Scheme and incidental to the completion of the transfer and vesting of the Demerged Undertaking of the Demerged Company in the Resulting Company respectively and transfer and vesting of assets and liabilities of Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5, Transferor Company 6 to Transferee Company in pursuance of this Scheme including stamp duty on the order(s) of the Tribunal, if any, to the extent applicable and payable shall be borne and paid by the Transferee Company, except in the event of this Scheme not taking effect as provided in Clause above in which case, each company shall bear and pay its own costs, charges and expenses incurred in relation to or in connection with this Scheme.

33. SEVERABILITY

If any part of this Scheme is found to be unworkable or invalid for any reason whatsoever, then same shall not, subject to the decision of the Board of Directors of the Companies, affect the validity or implementation of the other parts and/or provisions of this Scheme.

34. CONDITIONS PRECEDENT

This Scheme is and shall be conditional upon and subject to :

34.1 The requisite consent, approval or permission of the Central Government or any other statutory or regulatory authority which by law or otherwise may be necessary for the implementation of this Scheme.

34.2 the approval by the respective requisite majority of the shareholders and/or creditors (where applicable) of the Companies in accordance with the Act ;

34.3 the Tribunal having accorded its sanction to the Scheme ;

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35.3 certified copies of the order(s) of the Tribunal, sanctioning the Scheme, being filed with the Registrar of Companies, Gujarat, by all the Companies.

35. EFFECT OF NON-RECEIPT OF APPROVALS

In the event of any of the said sanctions and approvals referred to in the preceding Clause not being obtained and/or the Scheme not being sanctioned by the Tribunal, this Scheme shall stand revoked, cancelled and be of no effect, save and except in respect of any act or deed done prior thereto as is contemplated hereunder or as to any rights and/or liabilities which might have arisen or accrued pursuant thereto and which shall be governed and be preserved or worked out as is specifically provided in the Scheme or as may otherwise arise in law. Each party shall bear and pay its respective costs, charges and expenses for and or in connection with the Scheme.

36. MISCELLANEOUS

If any part of this Scheme hereof is invalid, ruled illegal by any Tribunal of competent jurisdiction or unenforceable under present or future laws, then it is the intention of the parties to the Scheme that such part shall be severable from the remainder of the Scheme, and the Scheme shall not be affected thereby, unless the deletion of such part shall cause this Scheme to become materially adverse to any party, in which case the parties to the Scheme shall attempt to bring about a modification in the Scheme, as will best preserve for such parties the benefits and obligations of the Scheme, including but not limited to such part.



BEFORE ME
09/04/2021
JESADIYA MANSUKHBHAI L.
NOTARY (Govt. of India)

"Annexure B"

COOL N CARE TECHNOLOGIES PRIVATE LIMITED

101, Sampatti Complex, Opp. Jagdish Hall,
Race Course, Vadodara – 390 007, Gujarat, India.
CIN: U29248GJ2014PTC078910, Mail: bdb@excelsource.co.in

CP (CAA) No. 60/NCLT/AHM/2021

Connected with

CA (CAA) No. 36/230-232/NCLT/AHM/2021

SCHEDULE OF ASSETS OF COOL N CARE TECHNOLOGIES PRIVATE LIMITED (Transferor Company No. 1) TO BE MERGED INTO EXCELSOURCE INTERNATIONAL PRIVATE LIMITED (Transferee Company)

Status as on 31/10/2022

NAME OF THE TRANSFEROR COMPANY	COOL N CARE TECHNOLOGIES PRIVATE LIMITED (Transferor Company 1)
Corporate Identification Number (CIN)	U29248GJ2014PTC078910
Registered Office	101 Sampatti Complex, Opp Jagdish Hall, Race Course, Vadodara 390007, Gujarat, India
Permanent Account Number (PAN)	AAFCC5938F
Tax Deduction & Collection Account Number (TAN)	—
GST Registration Number	24AAFCC5938F2ZP
Bank Account Details	(a) Bank Name:- Axis Bank Account No.:- 919020052971412 Type of Account:- Current Account Bank Address:- Vadodara Main Branch, Vardhman Complex, Opp. GEB, Race Course Circle, Vadodara (b) Bank Name:- Bank of Baroda Account No.:- 919020052971412 Type of Account:- Current Account Bank Address:- Gotri Road Branch
Fixed Deposit	Not Applicable
Other investments	Not Applicable
Electric Connections (Name of Electricity Company)	Not Applicable

IMMOVABLE PROPERTIES	
(1)	—

OTHER ASSETS	
(1) Plant & Machineries	Plant & Machineries namely (a) Plant & Machinery: Rs. 136854/- (Book Value as on 31/10/2022)
(2) Others Movable Assets	1) Electrical Equipments Rs. 29218/- 2) Furnitures & Fixtures Rs. 77044/-

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

COOL N CARE TECHNOLOGIES PRIVATE LIMITED

SOLUTIONS 4 ENERGY PRIVATE LIMITED

REG. OFF: - 301/302, SAMPATTI PREMISES, SARDAR BAUG LANE, BEHIND BOMBAY SHOPPING CENTRE, RACE COURSE, BARODA 390007

CIN: - U40106GJ2007PTC049913 E-MAIL ID: - bhavesh@s4e.co.in

CP (CAA) No. 60/NCLT/AHM/2021

Connected with

CA (CAA) No. 36/230-232/NCLT/AHM/2021

SCHEDULE OF ASSETS OF SOLUTIONS 4 ENERGY PRIVATE LIMITED (Transferor Company No. 2) TO BE MERGED INTO EXCELSOURCE INTERNATIONAL PRIVATE LIMITED (Transferee Company)

Status as on 31/10/2022

NAME OF THE TRANSFEROR COMPANY	**SOLUTIONS 4 ENERGY PRIVATE LIMITED** (Transferor Company 2)
Corporate Identification Number (CIN)	U40106GJ2007PTC049913
Registered Office	301/302, Sampatti Premises, Sardarbaug Lane, B/h Bombay Shopping Centre, Race Course, Vadodara-390007, Gujarat, India
Permanent Account Number (PAN)	AAKCS5937M
Tax Deduction & Collection Account Number (TAN)	BRDS06310D
GST Registration Number	24AAKCS5937M2ZQ
Bank Account Details	(a) Bank name: State Bank of India, (b) Account no. : 31799725574, (c) type of account: Current Account (d) Address: SBI – 1st Floor, Natubhai circle, Race course circle, gotri road, Vadodara
Fixed Deposit	Not Applicable
Other investments	Rs. 28,336,500.00/- (Investment in subsidiary companies)
Electric Connections (Madhya Gujarat Vij Company Limited)	Not Applicable

IMMOVALBE PROPERTIES	
(1)	NIL

OTHER ASSETS	
(1) Plant & Machineries	Plant & Machineries namely (a) NIL
(2) Others Movable Assets	(i) Electronics and Electrical equipment/fittings – Rs. 18866.05/- (ii) Computer/Mobile Instruments and Accessories – Rs. 52326.41/- (iii) Furniture and Fixtures – Rs. 49895.16/- (iv) Vehicles – Rs. 2368.30/- (v) Computer Software – Rs. 6591.42/-

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

SOLUTIONS 4 ENERGY PVT. LTD. VADODARA

GOLF WAY LEISURE PRIVATE LIMITED

301/302, Sampatti Premises, B/h Vanijya Bhavan, Sardar Baug Lane,
Behind Bombay Shopping Centre, Race Course,
Vadodara – 390 007, Gujarat, India

CIN: U55101GJ2007PTC077061, Mail: finance@excelsource.co.in

CP (CAA) No. 60/NCLT/AHM/2021

Connected with

CA (CAA) No. 36/230-232/NCLT/AHM/2021

SCHEDULE OF ASSETS OF GOLF WAY LEISURE PRIVATE LIMITED (Transferor Company No. 3) TO BE MERGED INTO EXCELSOURCE INTERNATIONAL PRIVATE LIMITED (Transferee Company)

Status as on 31/10/2022

NAME OF THE TRANSFEROR COMPANY	**GOLF WAY LEISURE PRIVATE LIMITED** (Transferor Company 3)
Corporate Identification Number (CIN)	U55101GJ2007PTC077061
Registered Office	301/302, Sampatti Complex, Sardarbaug Lane, B/h Bombay Shopping Centre, Race Course, Vadodara-390007, Gujarat, India.
Permanent Account Number (PAN)	AACCG9797P
Tax Deduction & Collection Account Number (TAN)	—
GST Registration Number	27AACCG9797P1ZH
Bank Account Details	(a) Bank Name:- Indian Bank Account No.:- 781711287 Type of Account:- Current Account Bank Address:- Kalyani Nagar Branch, Kalyani Nagar, Pune - 411006 (b) Bank Name:- Indian Bank Account No.:- 796084451 Type of Account:- Current Account Bank Address:- Ahmedabad
Fixed Deposit	Not Applicable
Other investments	NSC Deposits – Rs.5000/-
Electric Connections (Name of Electricity Company)	Not Applicable

IMMOVALBE PROPERTIES	
(1)	—

OTHER ASSETS	
(1) Plant & Machineries	Plant & Machineries namely Not Applicable
(2) Others Movable Assets	Not Applicable

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

GOLF WAY LEISURE PVT. LTD. VADODARA

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REDCLIEFFE REAL ESTATE PRIVATE LIMITED

201/202, Sampatti Premises, Sardar Baug Lane,
Behind Bombay Shopping Centre, Race Course,
Vadodara – 390 007, Gujarat, India

CIN: U45201GJ2008PTC054283, Mail: finance@excelsource.co.in

CP (CAA) No. 60/NCLT/AHM/2021

Connected with

CA (CAA) No. 36/230-232/NCLT/AHM/2021

SCHEDULE OF ASSETS OF REDCLIEFFE REAL ESTATE PRIVATE LIMITED (Transferor Company No. 4) TO BE MERGED INTO EXCELSOURCE INTERNATIONAL PRIVATE LIMITED (Transferee Company)

Status as on 31/10/2022

NAME OF THE TRANSFEROR COMPANY	**REDCLIEFFE REAL ESTATE PRIVATE LIMITED** (Transferor Company 4)
Corporate Identification Number (CIN)	U45201GJ2008PTC054283
Registered Office	201/202, Sampatti Premises, Sardar Baug Lane, Behind Bombay Shopping Centre, Race Course, Vadodara-390007, Gujarat, India
Permanent Account Number (PAN)	AAECR0518H
Tax Deduction & Collection Account Number (TAN)	BRDR01876A
GST Registration Number	24AAECR0518H1ZQ
Bank Account Details	(a) Bank name: Indian Bank, (b) Account no. : 778485808, (c) Type of account : (d) Address : Kalyani Nagar Branch, Building 2, Plot No. 8, S-213, Jupiter Housing Society, Kalyani nagar, Pune - 411006
Fixed Deposit	Not Applicable
Other investments	**Not Applicable**
Electric Connections (Name of Electricity Company)	Not Applicable

IMMOVALBE PROPERTIES	
(1)	NIL

OTHER ASSETS	
(1) Plant & Machineries	Plant & Machineries namely (a) NIL
(2) Others Movable Assets	(i) NIL

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

REDCLIEFFE REAL ESTATE PVT. LTD. BARODA

HOUSE & LIFE TECHNOLOGY PRIVATE LIMITED

REG. OFF: - 301-302, Sampatti Complex, Sardarbaug Lane, B/h Bombay Shopping Centre, Race Course, Vadodara – 390007, Gujarat, India.

CIN: - U31909GJ2009PTC058811 E-MAIL ID: - finance@excelsource.co.in

CP (CAA) No. 60/NCLT/AHM/2021

Connected with

CA (CAA) No. 36/230-232/NCLT/AHM/2021

SCHEDULE OF ASSETS OF HOUSE & LIFE TECHNOLOGY PRIVATE LIMITED (Transferor Company No. 5) TO BE MERGED INTO EXCELSOURCE INTERNATIONAL PRIVATE LIMITED (Transferee Company)

Status as on 31/10/2022

NAME OF THE TRANSFEROR COMPANY	**HOUSE & LIFE TECHNOLOGY PRIVATE LIMITED** (Transferor Company 5)
Corporate Identification Number (CIN)	U31909GJ2009PTC058811
Registered Office	301/302, Sampatti Complex, Sardarbaug Lane, B/h Bombay Shopping Centre, Race Course, Vadodara-390007, Gujarat, India.
Permanent Account Number (PAN)	AACCH3022Q
Tax Deduction & Collection Account Number (TAN)	BRDH01163B
GST Registration Number	NA
Bank Account Details	(a) Bank name: Indian Bank, (b) Account no. 866753266, (c) Type of account: Current Account, (d) Address: Indian Bank, Gotri Road, Vadodara
Fixed Deposit	Not Applicable
Other investments	**Not Applicable**
Electric Connections (Name of Electricity Company)	Not Applicable

IMMOVALBE PROPERTIES	
(1)	NIL

OTHER ASSETS	
(1) Plant & Machineries	Plant & Machineries namely (a) NIL
(2) Others Movable Assets	(i) Computer and accessories – Rs. 4787/-

House & Life Technology Pvt. Ltd. Vadodara

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

JAIVEEK AGRO BIOTECH PRIVATE LIMITED

REG OFF.: - 202 Sampatti Premises, Near Bombay Shopping Centre, Race Course, Vadodara 390007

CIN: - U01130GJ2007PTC051441 E-MAIL ID: - bdb@excelsource.co.in

CP (CAA) No. 60/NCLT/AHM/2021

Connected with

CA (CAA) No. 36/230-232/NCLT/AHM/2021

SCHEDULE OF ASSETS OF JAIVEEK AGRO BIOTECH PRIVATE LIMITED (Transferor Company No. 6) TO BE MERGED INTO EXCELSOURCE INTERNATIONAL PRIVATE LIMITED (Transferee Company)

Status as on 31/10/2022

NAME OF THE TRANSFEROR COMPANY	**JAIVEEK AGRO BIOTECH PRIVATE LIMITED** (Transferor Company 6)
Corporate Identification Number (CIN)	U01130GJ2007PTC051441
Registered Office	202, Sampatti Premises, Sardar Baug Lane, Behind Bombay Shopping Centre, Race Course, Vadodara-390007, Gujarat, India
Permanent Account Number (PAN)	AABCJ8670P
Tax Deduction & Collection Account Number (TAN)	BRDJ01503F
GST Registration Number	24AABCJ8670P1ZZ
Bank Account Details	(a) Bank name: Bank of Baroda, (b) Account no.: 01890500000054 (c) Type of account: Current Account (d) Address: P O Box no. 130, Industrial Estate, Gorwa road, Baroda - 390016
Fixed Deposit	Not Applicable
Other investments	**Not Applicable**
Electric Connections (Name of Electricity Company)	Not Applicable

IMMOVALBE PROPERTIES	
(1)	-

OTHER ASSETS	
(1) Plant & Machineries	Plant & Machineries namely (a) NIL
(2) Others Movable Assets	(i) Tools, Dyes, Moulds and stereos: Rs. 91,267.82/- (ii) RCC Tank & Storage Tank: Rs. 2,86,852.83/- (iii) Computer, Printer & Software: Rs. 6,465/- (iv) Furniture & Office Equipment: Rs. 72,820.42/-

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

Jaiveek Agro Bio Tech Pvt. Ltd. Vadodara

METMIN RESOURCE CONSULTANTS PRIVATE LIMITED

301/302, Sampatti Premises, B/h Vanijya Bhavan, Sardar Baug Lane,
Near Bombay Shopping Centre, Race Course,
Vadodara – 390 007, Gujarat, India

CIN: U74999GJ2007PTC077028, Mail: finance@excelsource.co.in

CP (CAA) No. 60/NCLT/AHM/2021

Connected with

CA (CAA) No. 36/230-232/NCLT/AHM/2021

SCHEDULE OF ASSETS OF METMIN RESOURCE CONSULTANTS PRIVATE LIMITED (Demerged Company 1) TO BE DEMERGED INTO EXCELSOURCE INTERNATIONAL PRIVATE LIMITED (Resulting Company / Transferee Company)

Status as at date 31/10/2022

NAME OF THE DEMERGED COMPANY	**Metmin Resource Consultants Private Limited** (Demerged Company 1)
Corporate Identification Number (CIN)	U74999GJ2007PTC077028
Registered Office	301/302, Sampatti Complex, Sardarbaug Lane, B/h Bombay Shopping Centre, Race Course, Vadodara-390007, Gujarat, India
Permanent Account Number (PAN)	AACCN8260A
Tax Deduction & Collection Account Number (TAN)	PNEN06682E
GST Registration Number	27AACCN8260A1ZP
Bank Account Details	(a) Bank name: ICICI Bank Ltd, (b) Account no. 739705000222 (c) Type of account: FOREX (d) Address: Tech Park, Plot No. 43/44 Pune Viman Nagar Maharashtra (e) Bank name: Indian Bank, (f) Account no. 784045267 (g) Type of account: Current Account (h) Address: Building - 2, Plot No. 8, S-213 Jupiter housing society, Kalyani nagar, Pune
Fixed Deposit	Not Applicable
Other investments	Not Applicable
Electric Connections (Maharashtra State Electricity Distribution Co. Ltd.)	(a) Electric Connection vide Consumer Number 160231568716 for Meter No. 055-X1149112

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

Metmin Resource Consultants Pvt. Ltd.

METMIN RESOURCE CONSULTANTS PRIVATE LIMITED

301/302, Sampatti Premises, B/h Vanijya Bhavan, Sardar Baug Lane,
Near Bombay Shopping Centre, Race Course,
Vadodara – 390 007, Gujarat, India

CIN: U74999GJ2007PTC077028, Mail: finance@excelsource.co.in

IMMOVALBE PROPERTIES	
(1)	(1) Building & development - Building (Lalwani Plaza & Srishti Centre): 4,16,49,766/- (Book value as on 31/10/2022) A. <u>Srishti Center : Rs 2,93,46,633/- (Book value as on 31/10/2022)</u> Address: - Office No. A-2, 1st Floor, "Srishti Center", S.No.29/A1/3/5, Pune Nagar Road, Ramwadi, Vadgaon Sheri, Tal. Haveli, Dist. Pune Carpet Area: - 10,886.58 sqft. B. <u>Lalwani Plaza: Rs 1,33,50,231/- (Book value as on 31/10/2022)</u> Address: - Office No. 05, 4th Floor, Wing A, "Lalwani Plaza" Co Op Housing Society Ltd., Plot No. 55/56, Sakore Nagar, New Airport Road, Near Viman Nagar, Lohgaon , Pune, Maharashtra - 411016 Built up Area: - 3591 sft.

OTHER ASSETS	
(1) Plant & Machineries	Not Applicable
(2) Others Movable Assets	(i) Computers and software: Rs. 21,583/- (ii) Furniture and Fixtures: Rs. 11,42,473/- (iii) Office equipment & Vehicles: Rs. 8,51,367/-

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

Metmin Resource Consultants Pvt. Ltd.